

LATHAM & WATKINS LLP

August 10, 2026

BY EDIS

The Honorable Lisa R. Barton
Secretary to the Commission
U.S. International Trade Commission
500 E Street, S.W., Room 112
Washington, DC 20436

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Re: ***Certain Dynamic Random Access Memory (DRAM) Devices, Products Containing the Same, and Components Thereof (III)***

Dear Secretary Barton:

Enclosed for filing on behalf of Netlist, Inc. (“Netlist” or “Complainant”) are documents in support of Netlist’s request that the Commission commence an investigation pursuant to Section 337 of the Tariff Act of 1930, as amended. Pursuant to the Commission Rules of Practice and Procedure, a request for confidential treatment of Confidential Exhibits 12, 60-62, 94-97, 101, 108, CC-18, CC-19, CC-24, CC-38, CC-39, CC-53, CC-54, CC-78, and CC-79 is being transmitted with this filing. In accordance with the Commission’s Rules enclosed are the following:

1. one electronic copy of Netlist’s verified Complaint and Statement of Public Interest (Rules 210.8(a)(1)(i) and 210.8(b));
2. one electronic copy of each of the accompanying non-confidential exhibits to the Complaint (Rules 210.4(f) and 210.8(a));
3. electronic copies of the accompanying confidential exhibits to the Complaint (Rules 201.6(c), 210.4(f) and 210.8(a));
4. electronic copies of U.S. Patent Nos. 10,025,731 (“731 Patent”); 10,217,523 (“523 Patent”); 12,373,366 (“366 Patent”); and 12,675,407 (“407 Patent”) (collectively the “Asserted Patents”) (Rule 210.12(a)(9)(ii));¹

¹ Certified copies of the Asserted Patents, their respective prosecution histories, and their respective assignment records have been ordered and will be filed with the Commission once they are received, pursuant to Commission Rule 210.12(a)(9)(ii).

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5. electronic copies of the assignments for the '731 Patent (Exhibit 5), the '523 Patent (Exhibit 6), the '366 Patent (Exhibit 7), and the '407 Patent (Exhibit 8) (Rule 210.12(c)(1));
6. electronic copies of the prosecution histories of the '731 Patent (Appendix A), the '523 Patent (Appendix B), the '366 Patent (Appendix C), and the '407 Patent (Appendix D) (Rule 210.12(c)(1));
7. electronic copies of the prosecution histories of the priority applications of the '731 Patent (Appendix E), the '523 Patent (Appendix F), the '366 Patent (Appendix G), and the '407 Patent (Appendix H) (Rule 210.12(c)(2)); and
8. a letter and certification pursuant to commission Rules 201.6(b) and 210.5(d) requesting confidential treatment of Confidential Exhibits 12, 60-62, 94-97, 101, 108, CC-18, CC-19, CC-24, CC-38, CC-39, CC-53, CC-54, CC-78, and CC-79.

Thank you for your attention to this matter.

Respectfully submitted,

/s/ Kevin C. Wheeler
Kevin C. Wheeler
of LATHAM & WATKINS LLP

Counsel for Complainant Netlist, Inc.

Enclosures

LATHAM & WATKINS LLP

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Madrid	Washington, D.C.

Re: ***Certain Dynamic Random Access Memory (DRAM) Devices, Products Containing the Same, and Components Thereof (III)***

Dear Secretary Barton:

I am counsel to Netlist, Inc. ("Netlist" or "Complainant"). In accordance with Commission Rules 201.6 and 210.5, Netlist requests confidential treatment of business information contained in Confidential Exhibits 12, 60-62, 94-97, 101, 108, CC-18, CC-19, CC-24, CC-38, CC-39, CC-53, CC-54, CC-78, and CC-79 to the Complaint.

The information for which confidential treatment is sought is proprietary commercial and financial information not otherwise publicly available. Specifically, Confidential Exhibit 62 contains proprietary information regarding Complainant's domestic industry, including information relating to the financial performance and commercial operations of Complainant's licensee. Confidential Exhibits 60-61 and 108 contain proprietary information regarding Complainant's and its licensees' financial agreements related to the Asserted Patents and the Domestic Industry Products. Confidential Exhibits 94-97, CC-24, CC-38, CC-39, CC-53, CC-54, CC-78, CC-79 contain proprietary technical information regarding the structure, operation, and function of the Domestic Industry Products. Confidential Exhibits 12, 101, CC-18, and CC-19 contain proprietary information regarding technical standards relevant to the Domestic Industry Products and Accused Products.

The information described above qualifies as confidential business information pursuant to Rule 201.6(a) in that:

- a) it is not available to the public;
- b) unauthorized disclosure of such information could cause substantial harm to the competitive position of Complainant and its licensee; and

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- c) the disclosure of which could impair the Commission's ability to obtain necessary information to perform its statutory function.

Respectfully submitted,

/s/ Kevin C. Wheeler
Kevin C. Wheeler
of LATHAM & WATKINS LLP

Counsel for Complainant Netlist, Inc.

Enclosures

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

In the Matter of

**CERTAIN DYNAMIC RANDOM ACCESS
MEMORY (DRAM) DEVICES,
PRODUCTS CONTAINING THE SAME,
AND COMPONENTS THEREOF (III)**

Investigation No. 337-TA-_____

**COMPLAINANT NETLIST, INC.'S
PUBLIC INTEREST STATEMENT**

Pursuant to 19 C.F.R. § 210.8(b), Complainant Netlist, Inc. (“Netlist”) respectfully submits this public interest statement with respect to the remedial orders it seeks against Micron Technology, Inc. and Micron Semiconductor Products, Inc. (collectively, “Micron”); Hewlett Packard Enterprise Co. (“HPE”); Lenovo Group Ltd. and Lenovo (United States) Inc. (collectively, “Lenovo”); and Super Micro Computer, Inc. (“Supermicro”) (collectively, “Proposed Respondents”). The infringing articles are certain Micron DRAM devices, products containing the same, and components thereof.

There is no reason for the Commission to specially delegate public interest issues to the ALJ in this investigation. The Commission has previously found that memory devices, like the articles at issue here, do not implicate public interest issues, including public health, safety, or welfare. *Certain Non-Volatile Memory Devices and Products Containing the Same*, Inv. No. 337-TA-1046, Comm’n Op. at 10, 64 (Oct. 9, 2018) (“*Non-Volatile Memory Devices*”); *see also Certain Magnetoresistive Random Access Memory (MRAM) Devices, Products Containing the Same and Components Thereof*, Inv. No. 337-TA-1487, Notice of Institution at 3 (Feb. 27, 2026) (not delegating public interest). In other investigations involving DRAM devices where public interest was delegated, Samsung Electronics Co., Ltd. (“Samsung”), a leader in the memory semiconductor market, was a Respondent; here, Samsung is a licensee of the asserted patents, which mitigates any concerns regarding market demand and replacement of the accused products. *See, e.g., Certain Dynamic Random Access Memory (DRAM) Devices, Products Containing the Same, and Components Thereof*, Inv. No. 337-TA-1472, Notice of Institution at 3 (Dec. 29, 2025). And as discussed below, the infringing products are goods sold in a diverse, competitive market. Thus, exclusion of the infringing products would not have any meaningful adverse impact on competitive conditions in the U.S. economy, including the production of like or directly competitive articles in the U.S., or on U.S. consumers. Accordingly, the Commission should decline to delegate the public interest in this investigation.

Moreover, there is a strong public interest in protecting intellectual property (“IP”) rights, including Netlist’s. *Certain Baseband Processor Chips and Chipsets, Transmitter and Receiver (Radio) Chips, Power Control Chips, and Products Containing the Same, Including Cellular Telephone Handsets*, Inv. No. 337-TA-543, Comm’n Op. (Pub. Version) at 150 (June 19, 2007) (“[I]n assessing public interest factors when granting relief, the Commission relies on the strong public interest in enforcing intellectual property rights[.]”).

Netlist is an Irvine, California-based company that has developed and provided high-performance modular memory subsystems to the world’s premier OEMs for over two decades. It holds a vast portfolio of patents, many seminal, in a wide range of memory technologies. Some of the world’s largest memory device providers have sought to license that portfolio, including SK hynix, Inc. (“SK hynix”) and Samsung, which currently hold licenses to the asserted patents. Enforcement of Netlist’s IP rights, including the right to exclude infringing goods, “is not a public interest concern.” *See, e.g., Certain Magnetic Tape Cartridges and Components Thereof*, Inv. No. 337-TA-1058, Comm’n Op. (Pub. Version) at 68-69 (Apr. 9, 2019). Rarely has the Commission found the protection of IP rights outweighed by other factors, and only where “an exclusion order would deprive the public of products necessary for some important health or welfare need: energy efficient automobiles, basic scientific research, or hospital equipment.” *Spansion, Inc. v. Int’l Trade Comm’n*, 629 F.3d 1331, 1360 (Fed. Cir. 2010). This investigation does not present such an exception.

Rather, the requested remedial orders are needed to provide effective relief from the Proposed Respondents’ ongoing infringement. They are especially appropriate here, as Micron is an adjudicated infringer. *See Netlist, Inc. v. Micron Tech., Inc.*, No. 2:22-cv-00294, Dkt. 151 (E.D. Tex. Jul. 11, 2024) (entering final judgment of infringement and jury verdict of \$445M in damages). Yet Micron and its customers nonetheless continue their infringement. Therefore, it is in the public interest to protect Netlist’s patent rights and stop the Proposed Respondents’ unfair competition.

I. THE USE OF THE ACCUSED PRODUCTS IN THE U.S.

The scope of the requested remedial orders is limited to certain DRAM devices, products containing the same, and components thereof. The accused products include Micron DDR5 DIMMs, which are designed for, among other things, use in enterprise-level servers and storage systems that support data-intensive applications. Other downstream Proposed Respondents HPE, Lenovo, and Supermicro incorporate Micron's DRAM devices into their own devices, rebrand Micron's DRAM devices, or sell Micron's DRAM devices. All of the accused products are directed towards commercial transactions and business use, not towards any public health, safety, or welfare need.

II. THE REMEDIAL ORDERS DO NOT RAISE ANY PUBLIC HEALTH, SAFETY, OR WELFARE CONCERNS

The accused products serve no public health or welfare purpose. The Commission has held that such memory devices and downstream products do not implicate public interest concerns. For example, in *Non-Volatile Memory Devices*, the target products were flash memory devices (NAND and SSDs) and devices containing them. *See* Comm'n Op. at 10 (Oct. 9, 2018). There, the Commission did not delegate the public interest. *Id.*, Notice of Institution at 1 (Apr. 6, 2017). Respondents argued that remedial orders would adversely impact public health, safety, and welfare because the accused devices were used throughout the economy, including in hospitals and medical systems, and were thus "critical" to "education, healthcare, government service, and public safety[.]" *Id.*, Resp. Op. Br. to Comm'n (Pub. Version) at 60-61 (July 23, 2018). But the Commission held that the memory devices did not raise any public health, safety, or welfare concerns because they were not "unique components of medical products, pharmaceuticals, or other products integral to the delivery of healthcare or the maintenance of public safety" and there were "alternative devices and alternative suppliers." *Id.*, Comm'n Op. at 64. The same is true here: the accused products include no unique features that impact public health, safety, or welfare concerns. Accordingly, there is no need to delegate the public interest in this investigation.

III. THERE ARE NUMEROUS LIKE OR DIRECTLY COMPETITIVE ARTICLES THAT COULD REPLACE THE ACCUSED PRODUCTS

There are numerous like or directly competitive articles on the market that could satisfy consumer demand for the accused products if the Commission issues an exclusion order. Netlist itself manufactures and sells DDR5 DIMMs that make use of the technology of the asserted patents, including the DI Products identified in the Complaint. Netlist licensees SK hynix and Samsung also produce non-accused DDR5 DIMMs that make use of the asserted patents, including the Domestic Industry Products identified in the Complaint. As of May 2025, both Netlist licensees SK hynix and Samsung are leading DRAM suppliers, and are projected to maintain their respective market shares.¹ Other third-party DRAM device suppliers available in the U.S. with manufacturing capacity that can contribute to replacing the excluded products include, among several others, Kingston Technology Company, Inc., PNY Technologies Inc., and VisionTek Products, LLC.² The downstream Proposed Respondents—HPE, Lenovo, and Supermicro—also can use DRAM devices from these several alternative suppliers, and substitute the accused products with these like articles. Further, other third parties offer products that can replace the downstream Proposed Respondents’ accused products. For example, ASUS produces servers that can substitute the accused products from the downstream Proposed Respondents, such as HPE’s ProLiant servers.³ There will be no disruption to the relevant markets, and no shortage of like or directly competitive products in the U.S.

¹ “SK Hynix set to overtake Samsung as DRAM leader amid AI-driven memory boom” (May 27, 2025), <https://www.spglobal.com/market-intelligence/en/news-insights/research/2025/05/sk-hynix-set-to-overtake-samsung-as-dram-leader-amid-ai-driven-memory-boom>.

² U.S. DRAM Market (July 2026), <https://www.kingsresearch.com/report/us-dram-market-3118>.

³ “ASUS Unveils All-New Intel Xeon 6 Server Lineup” (Feb. 25, 2025), <https://servers.asus.com/news/ASUS-Unveils-All-New-Intel-Xeon-6-Server-Lineup>.

IV. NETLIST, ITS LICENSEES SK HYNIX AND SAMSUNG, AND OTHER THIRD PARTIES HAVE THE CAPACITY TO REPLACE THE ACCUSED PRODUCTS

As discussed above, Netlist and its licensees SK hynix and Samsung, as well as other third parties, have the capacity to replace the volume of articles, if excluded from the U.S., in a commercially reasonable time. The presence of an adequate supply of products is sufficient to override any public interest concerns. *See Certain Lens-Fitted Film Packages*, Inv. No. 337-TA-406, Comm'n Op., 1999 WL 436531, at *13 (June 28, 1999).

V. THE REQUESTED REMEDIAL ORDERS WILL HAVE NO ADVERSE IMPACT ON U.S. CONSUMERS

The requested remedial orders would have no long-term impact on consumers or competitive conditions in the U.S. First, consumers generally do not purchase the accused products directly. Second, Netlist, SK hynix, Samsung, and other third parties are available to fill any void in the supply caused by entry of the requested remedial orders. Third, the accused products offered by the Proposed Respondents only account for a small portion of the diverse and competitive market. Any change in pricing in the market for the accused products is, thus, expected to be minimal and would be dispersed over large numbers of consumers with no material impact. *See id.* It is also unlikely that consumers will experience an impact on the availability or pricing of products and services that typically contain or utilize the accused products.

VI. CONCLUSION

This Investigation presents no special issues of public interest that would prevent the Commission's issuance of the requested limited exclusion order and cease-and-desist orders. Accordingly, there are no public interest concerns that would require discovery and trial on this issue. Netlist respectfully requests that the Commission decline to delegate public interest for fact-finding during the discovery period of the ensuing investigation.

Dated: August 10, 2026

Respectfully submitted,

/s/ Kevin C. Wheeler

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**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

In the Matter of

**CERTAIN DYNAMIC RANDOM ACCESS
MEMORY (DRAM) DEVICES,
PRODUCTS CONTAINING THE SAME,
AND COMPONENTS THEREOF (III)**

Investigation No. 337-TA-_____

**COMPLAINT OF NETLIST, INC., UNDER SECTION 337 OF THE TARIFF ACT OF
1930, AS AMENDED**

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6.	Recorded Assignments for U.S. Patent No. 10,217,523
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13.	Infringement Chart for U.S. Patent No. 12,373,366
14.	Infringement Chart for U.S. Patent No. 12,675,407
15.	Micron DRAM modules https://www.micron.com/products/memory/dram-modules
16.	Micron Technology SEC 10-K 2025
17.	Micron Corporate profile, https://www.micron.com/about/company/corporate-profile
18.	Micron Commits to China and Invests \$602 Million in Xi'an Plant (Reuters), https://www.reuters.com/technology/micron-invest-603-mln-factory-chinas-xian-over-next-few-years-2023-06-16/
19.	Micron Technology Locations, https://www.micron.com/about/locations
20.	Micron CEO Highlights Commitment to China Plant, Xi'an investment exceed \$1.5B (Chinadaily.com.cn), https://www.chinadaily.com.cn/a/202403/27/WS6603dce4a31082fc043befc2.html
21.	Micron Xi'an Sustainability Hub and Equipment Installation Completion (China.org.cn), http://www.china.org.cn/2025-07/21/content_117988690.shtml
22.	Micron plays “long-China” to remain competitive in DRAM market (The Wire China), https://www.thewirechina.com/2024/04/28/micron-plays-the-long-game-in-china-xian-semiconductor-plant
23.	Micron Signs Letter of Intent to Purchase Tongluo Site, https://investors.micron.com/news-releases/news-release-details/micron-signs-letter-intent-purchase-tongluo-site-begin-0
24.	Micron Technology SEC 10-K 2025 Ex. 21 Subsidiaries of the Registrant
25.	Micron Semiconductor State of Idaho Annual Report
26.	Supermicro SEC 10-K 2025
27.	HPE SEC 10-K 2025
28.	HPE SEC 10-K Ex. 21 Subsidiaries of the Registrant

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29.	Lenovo Group Limited Corporate Information, https://investor.lenovo.com/en/about/corpinfo.php
30.	Lenovo US Locations, https://www.lenovo.com/us/en/about/locations/
31.	Lenovo US Delaware Corporation Report.
32.	Lenovo US North Carolina Secretary of State Record
33.	Lenovo Group Pitchbook
34.	Lenovo Group Limited 2025 Interim Report
35.	Lenovo Server Buying Guide, https://www.lenovo.com/us/en/server-buying-guide/
36.	Micron Design Tools, https://www.micron.com/sales-support/design-tools
37.	Micron DRAM Components, https://www.micron.com/products/memory/dram-components
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39.	Supermicro's H14 Hyper Systems ft, https://www.youtube.com/watch?v=rq8sYZEMdAw
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42.	HPE Memory QuickSpecs and Technical White Papers, https://support.hpe.com/hpesc/public/docDisplay?docId=sd00002129en_us&docLocale=en_US
43.	HPE ProLiant Compute, https://www.hpe.com/us/en/compute/hpe-proliant-compute.html
44.	HPE DDR5 Smart Memory QuickSpecs, https://www.hpe.com/us/en/collaterals/collateral.a50004302enw.html
45.	Lenovo Press - Introduction to DDR5 Memory, https://lenovopress.lenovo.com/lp1618-introduction-to-ddr5-memory
46.	Micron Products, https://www.micron.com/products
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49.	Micron Authorized Distributors, https://www.micron.com/sales-support/sales-network/authorized-distributors#accordion-d99cfc348d-item-9e9e725455
50.	Micron DDR5 RDIMM (MTC20F2085S1RC48BAY) listing, https://www.serversupply.com/MEMORY/PC5-38400/32GB/MICRON/MTC20F2085S1RC48BAY_382338.htm
51.	Importation evidence for July 9, 2026 purchase of Micron DDR5 RDIMM (MTC20F2085S1RC48BAY)

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CC-135	TPS53840 Product Overview https://www.ti.com/product/TPS53840#features
CC-136	TPS53840 Data Sheet https://www.ti.com/lit/ds/symlink/tps53840.pdf?ts=1786159925843
CC-137	JESD301-5 / PMIC5030 specification
CC-138	Renesas P8911 Short-Form Datasheet https://www.renesas.com/en/document/sds/p8911-short-form-datasheet?srsId=AfmBOooTYT0IxzgSI MobscPuiT94B6gh2ens8XpFg4ZidPbIoJ_61ydE
CC-139	S2FPC01 Brochure https://www.product.live/pdfviewer?url=https%3A%2F%2Fwww.product.live%2Fdatasheet%2Fsemiconductorsamsung%2FS2FPC01_POWER_IC.pdf
CC-140	Montage M88SPD5118 / DDR5 SPD Hub
CC-141	Renesas SPD5118 – SPD HUB for DDR5
CC-142	DDR5 SDRAM RDIMM Addendum, MTC40F204WS1RC – 96 Gb, 24Gb die Revision B, Micron (Jan. 2023)
CC-143	DDR5 SDRAM RDIMM Addendum, MTC20F208XS1RC – 48 Gb, 24Gb die Revision B, Micron (Jan. 2023)
CC-144	RDMIMM Module Page, Samsung (“Samsung Module RDIMM”) https://semiconductor.samsung.com/dram/module/rdim/ (September 18, 2025)
CC-145	DDR5 MRDIMM: A Transformational Evolution For DDR5 DIMM, Semiconductor Engineering https://semiengineering.com/ddr5-mrdimm-a-transformational-evolution-for-ddr5-dimm/
CC-146	Samsung Memory Power IC https://semiconductor.samsung.com/power-ic/memory-power-ic/
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TABLE OF APPENDICES

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A.	Prosecution History for U.S. Patent No. 10,025,731
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E.	Prosecution Histories for Priority Application(s) of U.S. Patent No. 10,025,731
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I. INTRODUCTION

1.0. Netlist, Inc. (“Netlist” or “Complainant”) requests that the United States International Trade Commission institute an Investigation pursuant to Section 337 of the Tariff Act of 1930, as amended, 19 U.S.C. § 1337 (“Section 337”), to remedy the unlawful importation, sale for importation, and/or sale after importation by the Proposed Respondents of certain dynamic random access memory (“DRAM”) devices, and/or products containing the same, and/or components thereof. These products infringe certain claims of U.S. Patent Nos. 10,025,731 (“’731 Patent”); 10,217,523 (“’523 Patent”); 12,373,366 (“’366 Patent”); and 12,675,407 (“’407 Patent”) (collectively, the “Asserted Patents”) as follows:

U.S. Patent No.	Asserted Claims ¹
U.S. Patent No. 10,025,731	1 –13, 16–18
U.S. Patent No. 10,217,523	1 –15, 17, 18
U.S. Patent No. 12,373,366	1 –14, 16 –28
U.S. Patent No. 12,675,407	1 –5, 6 –20

1.1. Copies of the Asserted Patents are included as **Exhibits 1-4**.² Netlist holds all rights, title, and interest in and to the ’731, ’523, ’366, and ’407 Patents. Copies of the Assignment Records for each of the Asserted Patents are included as **Exhibits 5-8**.

1.2. The Asserted Patents were the product of the research and development activities of Netlist, a global developer and supplier of memory products. The Asserted Patents cover DRAM technology.

¹ Bolded claim numbers designate independent claims.

² Certified copies of the Asserted Patents and their respective assignments have been ordered and will be filed with the Commission once they are received, pursuant to Commission Rule 210.12(a)(9)(i)-(ii).

1.3. Netlist is an Irvine, California-based provider of memory solutions. Netlist is not a large company, but its technological contributions in the memory space have been massive. Its cutting-edge innovations form the basis of much of the memory technology found in servers and computing systems used today.

1.4. For example, Netlist as well as its licensees SK hynix Inc. and its U.S. subsidiaries (“SK hynix”) and Samsung Electronics Co., Ltd. and its U.S. subsidiaries (“Samsung”) have a robust existing domestic industry in the U.S., as discussed in more detail in Section IX, *infra*.

1.5. The Proposed Respondents are Micron Technology, Inc. (“Micron Technology”); Micron Semiconductor Products, Inc. (“Micron Semiconductor”) (collectively, “Micron”); Hewlett Packard Enterprise Co. (“HPE”); Lenovo Group Ltd. (“Lenovo Group”) and Lenovo (United States) Inc. (“Lenovo US”) (collectively, “Lenovo” or the “Proposed Lenovo Respondents”); and Super Micro Computer, Inc. (“Supermicro”) (all collectively, the “Proposed Respondents”). Each of the Proposed Respondents designs, develops, manufactures, sells for importation, imports into the U.S., and/or sells after importation into the U.S. certain DRAM devices, and/or products containing the same, such as servers and/or computing systems, and components thereof that infringe Netlist’s Asserted Patents.

1.6. Each of the Proposed Respondents has implemented Netlist’s innovative intellectual property in their products without authorization. Each of the Proposed Respondents currently designs, develops, manufactures, sells for importation, imports into the U.S., and/or sells after importation into the U.S. certain DRAM devices, and/or products containing the same, such as servers and computing systems, and/or components thereof that directly infringe, contributorily infringe, and/or induce the infringement of the Asserted Patents.

1.7. For example, according to its website, Micron is a provider of semiconductor devices, including DRAM memory modules, for a variety of industries. **Exhibit 15** (<https://www.micron.com/products/memory/dram-modules>). Micron sells its semiconductor products to customers all over the world. **Exhibit 16** (Micron Technology SEC 10-K 2025).

1.8. Micron’s manufacturing locations are located outside of the U.S., including China and Taiwan:

Manufacturing locations

- Boise, Idaho, USA
- Gujarat, India
- Hiroshima, Japan
- Manassas, Virginia, USA
- Muar, Malaysia
- Penang, Malaysia
- Singapore
- Taichung, Taiwan
- Tainan, Taiwan
- Taoyuan, Taiwan
- Xian, China
- All Micron Locations

*Some manufacturing locations have more than one manufacturing site.

Exhibit 17 (<https://www.micron.com/about/company/corporate-profile>).

1.9. Micron has heavily invested in its manufacturing plants in China. For example, in June 2023, Micron committed \$602 million to invest in a new plant in Xi’an, China, and maintains offices in Shanghai and Shenzhen in China. **Exhibit 18** (<https://www.reuters.com/technology/micron-invest-603-mln-factory-chinas-xian-over-next-few-years-2023-06-16/>); **Exhibit 19** (<https://www.micron.com/about/locations>).

1.10. The plant in Xi'an manufactures DRAM devices, and brings Micron's workforce in China to over 4,500 employees as of 2023. **Exhibit 18** (<https://www.reuters.com/technology/micron-invest-603-mln-factory-chinas-xian-over-next-few-years-2023-06-16/>). Micron's total investments in Xi'an exceed \$1.5 billion. **Exhibit 20** (<https://www.chinadaily.com.cn/a/202403/27/WS6603dce4a31082fc043befc2.html>). As Micron has stated: "China is a critical part of our global business. We are focused on being able to support that business." *Id.*

1.11. In May 2025, Micron completed production equipment installation at the upgraded Xi'an facility. **Exhibit 21** (http://www.china.org.cn/2025-07/21/content_117988690.shtml). As industry experts have suggested, "to stay globally competitive in the memory chip industry, Micron needs to keep a foot in China," as "China's growing consumer electronics market still offers great potential for DRAM." **Exhibit 22** (<https://www.thewirechina.com/2024/04/28/micron-plays-the-long-game-in-china-xian-semiconductor-plant/>).

1.12. Recently, in January 2026, Micron announced that it has signed an exclusive Letter of Intent (LOI) to acquire Powerchip Semiconductor Manufacturing Corporation's (PSMC) P5 fabrication site in Tongluo, Miaoli County, Taiwan, for total cash consideration of \$1.8 billion USD. Micron expects this acquisition to contribute to meaningful DRAM wafer output beginning in the second half of calendar 2027. **Exhibit 23** (<https://investors.micron.com/news-releases/news-release-details/micron-signs-letter-intent-purchase-tongluo-site-begin-0>).

1.13. Micron's downstream customers include HPE, Lenovo Group, Lenovo US, and Supermicro. These downstream customers incorporate Micron's infringing DRAM devices into

their own devices, rebrand Micron's infringing DRAM devices, or sell Micron's infringing DRAM devices, as discussed below.

1.14. Each of the Proposed Respondents currently designs, uses, tests, manufactures, imports into the U.S., sells for importation into the U.S., sells in the U.S. after importation, and/or instructs others regarding the use or manufacture of certain DRAM devices, and/or products containing the same, such as servers and computing systems, and/or components thereof, and therefore contributorily infringes, and/or induces the infringement of the Asserted Patents.

1.15. Complainant seeks, as relief, a limited exclusion order barring from entry into the U.S. infringing DRAM devices manufactured by or on behalf of, or imported by or on behalf of, Micron and the other Proposed Respondents, and/or products containing the same, and/or components thereof. Complainant also seeks cease and desist orders prohibiting the sale for importation, importation, sale after importation, distribution, offer for sale, promotion, marketing, advertising, testing, demonstration, warehousing inventory for distribution, solicitation of sales, programming, repairing, maintenance, use, transfer, and other commercial activity relating to infringing certain DRAM devices, and/or products containing the same, such as servers and computing systems, and/or components thereof. Complainant also seeks imposition of a bond during the Presidential Review Period pursuant to 19 U.S.C. § 1337(j).

1.16. As further set forth below, pursuant to Commission Rule 210.12(a)(6)(i), a domestic industry as defined in 19 U.S.C. § 1337(a)(2) and (3) exists in the U.S. relating to Netlist's licensee's domestic activities related to the technology of the Asserted Patents and products that practice the Asserted Patents.

II. COMPLAINANT

2.1. Netlist is a corporation organized and existing under the laws of the State of Delaware, having a principal place of business at 111 Academy Way, Suite 100, Irvine, CA 92617.

III. PROPOSED RESPONDENTS

A. Micron

3.1. Proposed Respondent Micron Technology is a Delaware corporation with its headquarters located at 8000 South Federal Way, Boise, Idaho 83716. **Exhibit 16** (Micron Technology SEC 10-K 2025) at 1-2. Micron has a variety of subsidiaries located around the world. **Exhibit 24** (Micron Technology SEC 10-K 2025 Ex. 21 Subsidiaries of the Registrant).

3.2. Proposed Respondent Micron Semiconductor is an Idaho corporation with its headquarters located at 8000 South Federal Way, Boise, Idaho 83716. **Exhibit 25** (Micron Semiconductor - State of Idaho Annual Report). Micron Semiconductor is a wholly owned subsidiary of Micron Technology. **Exhibit 24** (Micron Technology SEC 10-K Subsidiaries of Registrant).

3.3. Upon information and belief, Micron, itself and through its subsidiaries, design, develop, manufacture, sell for importation, import into the U.S., and/or sell after importation into the U.S. certain DRAM devices, and/or products containing the same, such as servers and computing systems, and/or components thereof. **Exhibit 16** (Micron Technology SEC 10-K 2025) at 98 (identifying “[r]evenue based on the geographic location of [] customer’s headquarters,” including from the U.S.). Upon information and belief, this is the primary nature of its business, specifically the design, development, manufacture, sale for importation, importation into the U.S., and/or sale after importation of certain DRAM devices, and/or products containing the same, such as servers and computing systems, and/or components thereof. *Id.* at 8.

B. HPE

3.4. Proposed Respondent HPE is a Delaware corporation with its headquarters located at 1701 E Mossy Oaks Rd, Spring, Texas 77389. **Exhibit 27** (HPE SEC 10-K 2025) at 1. HPE

has a variety of subsidiaries located around the world. **Exhibit 28** (HPE SEC 10-K 2025 Ex. 21 Subsidiaries of the Registrant).

3.5. Upon information and belief, HPE, itself and through its subsidiaries, designs, develops, manufactures, sells for importation, imports into the U.S., and/or sells after importation into the U.S. certain DRAM devices, and/or products containing the same, such as servers and computing systems, and/or components thereof. **Exhibit 27** (HPE SEC 10-K 2025) at 10 (identifying approximately 40% of sales to customers in the U.S.). Upon information and belief, this is the primary nature of its business, specifically the design, development, manufacture, sale for importation, importation into the U.S., and/or sale after importation of certain DRAM devices, and/or products containing the same, such as servers and computing systems, and/or components thereof, including in relation to HPE's server products. *Id.* at 6-9.

C. Lenovo

3.6. Proposed Respondent Lenovo Group is a Hong Kong corporation with its China-based headquarters located at Building 2, No.10 Courtyard Xibeiwang East Road, Haidian District, 100094 Beijing, China; and its U.S.-based headquarters located at 8001 Development Drive, Morrisville, NC 27560, United States. **Exhibit 29** (<https://investor.lenovo.com/en/about/corpinfo.php>); **Exhibit 30** (<https://www.lenovo.com/us/en/about/locations/>).

3.7. Proposed Respondent Lenovo US is a Delaware corporation with its headquarters located at 8001 Development Drive, Morrisville, NC 27560, United States. **Exhibit 31** (Lenovo US Delaware Corporation Report); **Exhibit 32** (Lenovo US North Carolina Secretary of State Record). Lenovo US is a wholly-owned subsidiary of Lenovo Group Limited. **Exhibit 33** (Lenovo Group Pitchbook) at 55.

3.8. Upon information and belief, Lenovo, themselves and through their subsidiaries, design, develop, manufacture, sell for importation, import into the U.S., and/or sell after importation into the U.S. certain DRAM devices, and/or products containing the same, such as servers and computing systems, and/or components thereof. Upon information and belief, this is the primary nature of their business, specifically the design, development, manufacture, sale for importation, importation into the U.S., and/or sale after importation of certain DRAM devices, and/or products containing the same, such as servers and computing systems, and/or components thereof, including in relation to Lenovo's server business. **Exhibit 34** (Lenovo Group 2025 Interim Report) at 49, 51; **Exhibit 35** (<https://www.lenovo.com/us/en/server-buying-guide/>).

D. Supermicro

3.9. Proposed Respondent Supermicro is a Delaware corporation with its headquarters located at 980 Rock Avenue, San Jose, California 95131. **Exhibit 26** (Supermicro SEC 10-K 2025) at 1. Supermicro has a variety of subsidiaries located around the world. *Id.* at 180.

3.10. Upon information and belief, Supermicro, itself and through its subsidiaries, designs, develops, manufactures, sells for importation, imports into the U.S., and/or sells after importation into the U.S. certain DRAM devices, and/or products containing the same, such as servers and computing systems, and/or components thereof. *Id.* at 9 (“We believe we are the only major server, storage, and accelerated compute platform vendor that designs, develops, and manufactures a significant portion of their systems in the United States.”), 8 (identifying approximately 60% of sales to customers in the U.S.). Upon information and belief, this is the primary nature of its business, specifically the design, development, manufacture, sale for importation, importation into the U.S., and/or sale after importation of certain DRAM devices, and/or products containing the same, such as servers and computing systems, and/or components thereof, including in relation to Supermicro's server and storage systems. *Id.* at 4-7.

IV. THE TECHNOLOGY AND PRODUCTS AT ISSUE

4.1. The technology at issue generally relates to memory modules used in servers and computer systems. Many commercial computing products utilize memory modules. A memory module is a printed circuit board that contains, among other components, multiple individual memory devices (such as DRAM packages or portions thereof) designed to interact with a host's memory controller external to the memory module. Modern memory modules often adopt the form of Dual In-line Memory Modules ("DIMMs"). The memory devices on the memory module are typically arranged in "ranks," which are accessible by a processor or memory controller of the host system. A memory module is typically installed into a memory slot on a computer or server motherboard.

4.2. Memory modules are designed for, among other things, use in servers such as those supporting cloud-based computing and other data-intensive applications. Memory modules are typically characterized by, among other things, the generation of DRAM on the module (e.g., DDR5, DDR4, DDR3) and the type of module, including Registered Dual In-line Memory Modules ("RDIMMs") and Multi-Ranked Buffered Dual In-Line Memory Modules ("MRDIMMs").

4.3. Pursuant to Commission Rules §§ 210.10(b)(1) and 210.12(a)(12), the categories of products accused (collectively, "Accused Products") are certain DRAM devices (e.g., DDR5 generation DIMM), and products containing the same (such as servers, computing systems, and storage systems), and components thereof.

4.4. The Accused Products include: Micron's DRAM devices, including RDIMMs and MRDIMMs; and/or products containing the same, such as servers and computing systems; and/or components thereof, including power management integrated circuits ("PMIC"), registered clock driver ("RCD") chips, DRAM chips, DRAM dies, interface dies, data buffers, temperature sensors,

printed circuit boards, and serial presence detect (“SPD”) circuits. Specifically, these devices are DDR5 generation DIMMs.

4.5. Complainant currently accuses the following exemplary Micron products (collectively, “Micron Accused Products”) that practice the technology claimed by the Asserted Patents: Micron’s DDR5 memory modules, including, but not limited to, RDIMMs and MRDIMMs. These include, for example, the following products, and variants: MTC40F2046S1RC64BH1; MTC20F1045S1RC80BH1; MTA18ASF2G72PZ-3G2R1; MTA36ASF8G72PZ-3G2F1; MTC40F2046S1RC80BH1; MTC10F1084S1RC80BH1; MTA18ASF2G72PDZ-3G2R1; MTA18ASF4G72PZ-3G2F1; MTC40F2047S1RC80BE1; MTC20F2085S1RC64BH1; MTC20F2085S1RC80BH1; MTC80F404VM1HC1CXE1; MTC40F408WS1HC1AXE1; MTC40F204WS1HC1CXE1; MTC40F2047S1HC88XB1; MTC40F204WS1HC88XC1; MTC40F204WS1HC88XB2; MTC40F2046S1HC88XD1; MTC20F2085S1HC88XD1; MTC40F4086S1HC88XD1; MTC20F2085S1RC48BAY; MTC20F2085S1RC56BD1; MTC20F1045S1RC48BA2; MTC10F1084S1RC48BA1. *See Exhibit 47* (<https://www.micron.com/products/memory/dram-modules/rdimm/part-catalog>); *Exhibit 48* (<https://www.micron.com/products/memory/dram-modules/mrdimm/part-catalog>); *Exhibit 99* (Micron DDR5 Module Part Numbering System).

4.6. For clarity, Netlist also accuses HPE, Lenovo, and Supermicro products that include Micron DRAM devices or are Micron DRAM devices that are rebranded and/or certified to be sold as HPE, Lenovo, and Supermicro products. These products also infringe the Asserted Patents, and Netlist seeks exclusion of all HPE, Lenovo, and Supermicro products that include Micron’s infringing DRAM devices or are Micron’s infringing DRAM devices that are rebranded and/or certified to be sold as HPE, Lenovo, and Supermicro products.

4.7. Upon information and belief, the Accused Products are compliant with the applicable memory standards promulgated by the JEDEC Solid State Technology Association (“JEDEC”). The claim charts submitted with this Complaint rely in part on functionality contained within certain standards issued by JEDEC. However, Netlist is not relying on essentiality to the standard to establish infringement by the proposed Respondents. In particular, the JEDEC standard does not require all limitations of any one of the Asserted Claims. Accordingly, none of the Asserted Claims is standard-essential. Rather, Netlist anticipates that its infringement positions will be further confirmed by evidence obtained through discovery from Respondents that is otherwise not publicly available.

V. THE ASSERTED PATENTS AND NON-TECHNICAL DESCRIPTION OF THE INVENTIONS³

A. U.S. Patent No. 10,025,731

1. Identification of the ’731 Patent and Ownership by Netlist

5.1. The U.S. Patent and Trademark Office, after full and fair examination, duly and legally issued U.S. Patent No. 10,025,731, titled “Memory Module and Circuit Providing Load Isolation and Noise Reduction,” to inventors Hyun Lee, Jayesh R. Bhakta, Jeffrey C. Solomon, Mario Jesus Martinez, and Chi-She Chen. *See Exhibit 1* (’731 Patent). The ’731 Patent issued from Application No. 14/715,491, filed on May 18, 2015. *Id.*

5.2. The ’731 Patent has 1 independent claim and 17 dependent claims. *Id.* Netlist is asserting claims 1–13 and 16–18 of the ’731 Patent in this Investigation.

³ All non-technical descriptions of and categorizations of the patents are for the purposes of providing general information only and should not be interpreted as a representation regarding the scope or applicability of any patent, or the requirements or meaning of any patent claims.

5.3. The Asserted Claims of the '731 Patent are valid, enforceable, and currently in full force and effect until the expiration of the '731 Patent on July 30, 2029. Netlist holds all rights, title, and interest in the '731 Patent with full rights to enforce the same. **Exhibit 5** ('731 Patent Assignment).

5.4. A copy of the prosecution history of the '731 Patent has been submitted with this Complaint as **Appendix A**. A certified copy of the prosecution history has been ordered and will be filed with the Commission once it is received, pursuant to Commission Rule 210.12(c)(1). Pursuant to Commission Rule 210.12(c)(2), a copy of the prosecution histories of the priority applications for the '731 Patent also have been submitted with this Complaint as **Appendix E**.

2. Non-Technical Description of the '731 Patent

5.5. The '731 Patent generally relates to a memory module that includes signal correction circuits, each including at least one programmable impedance mismatch circuit, to correct signals transmitted to and from the module's memory devices. The claimed correction circuitry can reduce signal noise due to impedance mismatch in the system, enabling the claimed memory modules to provide stable, reliable signals at high data rates.

3. Foreign and Domestic Counterparts to the '731 Patent

5.6. A list of each foreign patent, each foreign or domestic patent application (not already issued as a patent), and each foreign or domestic patent application that has been denied, abandoned or withdrawn, corresponding to the '731 Patent, with an indication of the prosecution status of each such patent application is attached as **Exhibit 9** (List of Foreign and Domestic Counterparts).

4. Licenses to the '731 Patent

5.7. Pursuant to Commission Rule 210.12(a)(9)(iii), the licensed entities for the '731 Patent are listed in **Exhibit 10** to this Complaint. To Netlist's knowledge, there are no other licensed entities to the '731 Patent other than those listed in **Exhibit 10**.

B. U.S. Patent No. 10,217,523

1. Identification of the '523 Patent and Ownership by Netlist

5.8. The U.S. Patent and Trademark Office, after full and fair examination, duly and legally issued U.S. Patent No. 10,217,523, titled "Multi-Mode Memory Module with Data Handlers," to inventors Hyun Lee, Jayesh R. Bhakta, and Soonju Choi on February 26, 2019. *See Exhibit 2* ('523 Patent). The '523 Patent issued from Application No. 14/229,844, filed on March 29, 2014.

5.9. The '523 Patent has 2 independent claims and 34 dependent claims. *Id.* Netlist is asserting claims 1–15, 17, 18 of the '523 Patent in this Investigation. Further investigation and discovery may lead to the assertion of additional claims.

5.10. The Asserted Claims of the '523 Patent are valid, enforceable, and currently in full force and effect until the expiration of the '523 Patent on October 9, 2029. Netlist holds all rights, title, and interest in the '523 Patent with full rights to enforce the same. **Exhibit 6** ('523 Patent Assignment).

5.11. A copy of the certified prosecution history of the '523 Patent has been submitted with this Complaint as **Appendix B**. A certified copy of the prosecution history has been ordered and will be filed with the Commission once it is received, pursuant to Commission Rule 210.12(c)(1). Pursuant to Commission Rule 210.12(c)(2), a copy of the prosecution histories of the priority applications for the '523 Patent also have been submitted with this Complaint as **Appendix F**.

2. Non-Technical Description of the '523 Patent

5.12. The '523 Patent generally relates to a novel architecture for memory modules that support two modes of operation (e.g., a testing/training mode and a normal operation mode). The claimed modules utilize a data module (or buffer) and a separate control module. When the module operates in the first mode (e.g., testing/training mode), the data module isolates the memory devices and the memory controller and provides data patterns, and the control module provides address and control signals. Separating the control and data handling makes the system more modular (and thus more flexible) than prior-art testing approaches. The invention also allows the DRAMs on a module to be divided into several groups, each group being tested independently of the other groups, thus speeding up the testing and improving the reliability of the testing/training functionality.

3. Foreign and Domestic Counterparts to the '523 Patent

5.13. A list of each foreign patent, each foreign or domestic patent application (not already issued as a patent), and each foreign or domestic patent application that has been denied, abandoned or withdrawn, corresponding to the '523 Patent, with an indication of the prosecution status of each such patent application is attached as **Exhibit 9** (List of Foreign and Domestic Counterparts).

4. Licenses to the '523 Patent

5.14. Pursuant to Commission Rule 210.12(a)(9)(iii), the licensed entities for the '523 Patent are listed in **Exhibit 10** to this Complaint. To Netlist's knowledge, there are no other licensed entities to the '523 Patent other than those listed in **Exhibit 10**.

C. U.S. Patent No. 12,373,366

1. Identification of the '366 Patent and Ownership by Netlist

5.15. The U.S. Patent and Trademark Office, after full and fair examination, duly and legally issued U.S. Patent No. 12,373,366, titled “Memory With On-Module Power Management,” to inventors Chi-She Chen, Jeffrey C. Solomon, Scott H. Milton, and Jayesh Bhakta. *See Exhibit 3* (’366 Patent). The ’366 Patent issued from Application No. 17/582,797, filed on January 24, 2022. *Id.*

5.16. The ’366 Patent has 3 independent claims and 35 dependent claims. *Id.* Netlist is asserting claims 1–14 and 16–28 of the ’366 Patent in this Investigation. Further investigation and discovery may lead to the assertion of additional claims.

5.17. The Asserted Claims of the ’366 Patent are valid, enforceable, and currently in full force and effect until the expiration of the ’366 Patent on June 2, 2028. Netlist holds all rights, title, and interest in the ’366 Patent with full rights to enforce the same. **Exhibit 7** (’366 Patent Assignment).

5.18. A copy of the prosecution history of the ’366 Patent has been submitted with this Complaint as **Appendix C**. A certified copy of the prosecution history has been ordered and will be filed with the Commission once it is received, pursuant to Commission Rule 210.12(c)(1). Pursuant to Commission Rule 210.12(c)(2), a copy of the prosecution histories of the priority applications for the ’366 Patent also have been submitted with this Complaint as **Appendix G**.

2. Non-Technical Description of the ’366 Patent

5.19. The ’366 Patent generally relates to memory modules with on-module power management that enables the high-speed data communications that are achieved in modern DDR5 memory modules. The claimed modules contain an arrangement of data lines and associated circuitry that allow for significant improvements in bandwidth and performance. To accommodate increased data rates, the claimed modules contain circuitry that allows for power management on the memory modules themselves (as opposed to on the motherboard on which the memory

modules are mounted). This on-module power management results in more precise voltage control and increased energy efficiency, which is critical in modern computing systems.

3. Foreign and Domestic Counterparts to the '366 Patent

5.20. A list of each foreign patent, each foreign or domestic patent application (not already issued as a patent), and each foreign or domestic patent application that has been denied, abandoned or withdrawn, corresponding to the '366 Patent, with an indication of the prosecution status of each such patent application is attached as **Exhibit 9** (List of Foreign and Domestic Counterparts).

4. Licenses to the '366 Patent

5.21. Pursuant to Commission Rule 210.12(a)(9)(iii), the licensed entities for the '366 Patent are listed in **Exhibit 10** to this Complaint. To Netlist's knowledge, there are no other licensed entities to the '366 Patent other than those listed in **Exhibit 10**.

D. U.S. Patent No. 12,675,407

1. Identification of the '407 Patent and Ownership by Netlist

5.22. The U.S. Patent and Trademark Office, after full and fair examination, duly and legally issued U.S. Patent No. 12,675,407, titled "Memory Module with Local Clock Signals," to inventors Hyun Lee and Jayesh Bhakta. *See Exhibit 4* ('407 Patent). The '407 Patent issued from Application No. 18/935,410, filed on November 1, 2024. *Id.*

5.23. The '407 Patent has 1 independent claim and 19 dependent claims. *Id.* Netlist is asserting claims 1–20 of the '407 Patent in this Investigation. Further investigation and discovery may lead to the assertion of additional claims.

5.24. The Asserted Claims of the '407 Patent are valid, enforceable, and currently in full force and effect until the expiration of the '407 Patent on July 28, 2034. Netlist holds all rights,

title, and interest in the '407 Patent with full rights to enforce the same. **Exhibit 8** ('407 Patent Assignment).

5.25. A copy of the prosecution history of the '407 Patent has been submitted with this Complaint as **Appendix D**. A certified copy of the prosecution history has been ordered and will be filed with the Commission once it is received, pursuant to Commission Rule 210.12(c)(1). Pursuant to Commission Rule 210.12(c)(2), a copy of the prosecution histories of the priority applications for the '407 Patent also have been submitted with this Complaint as **Appendix H**.

2. Non-Technical Description of the '407 Patent

5.26. The '407 Patent generally relates to a memory module operable in a computer system having a memory controller and a system bus and comprises memory devices organized in a plurality of groups, and circuits coupled to the memory devices. The circuits include circuitry configurable to receive from the memory controller a system clock and input control and address (C/A) signals, and to generate a module clock signal and module C/A signals in response to the system clock and input C/A signals. The circuits further include circuitry configurable to generate a plurality of local clock signals corresponding, respectively, to the plurality of groups of memory devices, and to output the plurality of local clock signals to respective groups of the memory devices. A respective local clock signal has a respective phase relationship with the module clock signal that can be programmed independently of other local clock signals and is output to a corresponding group of the memory devices.

3. Foreign and Domestic Counterparts to the '407 Patent

5.27. A list of each foreign patent, each foreign or domestic patent application (not already issued as a patent), and each foreign or domestic patent application that has been denied, abandoned or withdrawn, corresponding to the '407 Patent, with an indication of the prosecution

status of each such patent application is attached as **Exhibit 9** (List of Foreign and Domestic Counterparts).

4. Licenses to the '407 Patent

5.28. Pursuant to Commission Rule 210.12(a)(9)(iii), the licensed entities for the '407 Patent are listed in **Exhibit 10** to this Complaint. To Netlist's knowledge, there are no other licensed entities to the '407 Patent other than those listed in **Exhibit 10**.

VI. UNLAWFUL AND UNFAIR ACTS OF RESPONDENTS

6.1. The unlawful and unfair acts of Respondents identified below are exemplary and should not be considered in any way limiting. For example, Netlist provides examples of unlawful and unfair acts related to Micron, HPE, Lenovo, and Supermicro for the Asserted Patents.

6.2. Netlist reserves the right to identify additional infringing products in light of further discovery. Netlist has not yet had the benefit of discovery, and thus this identification of specific models or types of products below is not intended to limit the scope of this Investigation. Any remedy should extend to all infringing products.

6.3. An exemplary list of the Accused Products that practice at least one claim from one or more of the Asserted Patents is provided as **Exhibit 36**.

A. Infringement of U.S. Patent No. 10,025,731

1. Direct Infringement

6.4. A representative claim chart comparing certain claims of the '731 Patent to the '731 Accused Products is attached as **Exhibit 11**.

a. Micron

6.5. Upon information and belief, Micron imports, sells for importation, and/or sells after importation into the U.S., Accused Products that infringe the '731 Patent, literally or under the doctrine of equivalents.

6.6. The Accused Products include at least the following products that infringe at least claims 1–13 and 16–18 of the '731 Patent, literally or under the doctrine of equivalents: Micron's DDR5 memory modules, including, but not limited to, RDIMMs and MRDIMMs, and any other Micron memory products that are structured and operated in materially the same way in material aspects (collectively, the "'731 Micron Accused Products"). Netlist has not yet had the benefit of discovery, and thus this identification of models or types of products is not intended to limit the scope of this Investigation. Any remedy should extend to all infringing products.

b. HPE

6.7. Upon information and belief, HPE imports, sells for importation, and/or sells after importation into the U.S., Accused Products that infringe the '731 Patent, literally or under the doctrine of equivalents.

6.8. The Accused Products include at least the following products that infringe at least claims 1–13 and 16–18 of the '731 Patent, literally or under the doctrine of equivalents at least by their incorporation, rebranding, or sale of the '731 Micron Accused Products: HPE P56152-001, and any other HPE memory products that are structured and operated in materially the same way in material aspects (collectively, the "'731 HPE Accused Products"). Netlist has not yet had the benefit of discovery, and thus this identification of models or types of products is not intended to limit the scope of this Investigation. Any remedy should extend to all infringing products.

c. Lenovo

6.9. Upon information and belief, Lenovo imports, sells for importation, and/or sells after importation into the U.S., Accused Products that infringe the '731 Patent, literally or under the doctrine of equivalents.

6.10. The Accused Products include at least the following products that infringe at least claims 1–13 and 16–18 of the ’731 Patent, literally or under the doctrine of equivalents at least by their incorporation, rebranding, or sale of the ’731 Micron Accused Products: Lenovo 4X77A77030, and any other Lenovo memory products that are structured and operated in materially the same way in material aspects (collectively, the “’731 Lenovo Accused Products”). Netlist has not yet had the benefit of discovery, and thus this identification of models or types of products is not intended to limit the scope of this Investigation. Any remedy should extend to all infringing products.

d. Supermicro

6.11. On information and belief, Supermicro imports, sells for importation, and/or sells after importation into the U.S., Accused Products that infringe the ’731 Patent, literally or under the doctrine of equivalents.

6.12. The Accused Products include at least the following products that infringe at least claims 1–13 and 16–18 of the ’731 Patent, literally or under the doctrine of equivalents at least by their incorporation, rebranding, or sale of the ’731 Micron Accused Products: Supermicro MEM-DR516L-ER48, and any other Supermicro memory products that are structured and operated in materially the same way in material aspects (collectively, the “’731 Supermicro Accused Products”). Netlist has not yet had the benefit of discovery, and thus this identification of models or types of products is not intended to limit the scope of this Investigation. Any remedy should extend to all infringing products.

2. Indirect Infringement

6.13. Upon information and belief, Respondents knowingly and intentionally induce users of one or more of the ’731 Micron Accused Products, ’731 HPE Accused Products, ’731 Lenovo Accused Products, and ’731 Supermicro Accused Products, to directly infringe one or

more claims of the Asserted Patents by encouraging, instructing, and aiding one or more persons in the United States, including, but not limited to, their employees who test and operate these products at Respondents' direction, to make, use (including testing those devices and methods), sell, or offer to sell one or more of these products, during or after such article's importation into the United States, in a manner that infringes the '731 Patent.

6.14. Upon information and belief, Respondents were aware of the '731 Patent or acted with willful blindness as to its existence at least as a result of the filing of Netlist's parallel U.S. district court complaints alleging infringement of the Asserted Patents and/or the filing of this Complaint. *See* Section X.A, *infra*.

6.15. Upon information and belief, Respondents knew or should have known that their encouraging, instructing, and aiding of users of one or more of the '731 Micron Accused Products, '731 HPE Accused Products, '731 Lenovo Accused Products, and '731 Supermicro Accused Products in the United States in a manner that infringes the '731 Patent, including, but not limited to, Respondents' employees who test and operate these products at the direction of Respondents, to make, use (including testing those devices and methods), sell, or offer to sell one or more of these products, during or after such article's importation into the United States, would result in direct infringement and intended to cause those acts which constitute that direct infringement.

6.16. For example, Respondents provide significant support and documentation, such as manuals, product briefs, guides, webpages, and videos that demonstrate how the '731 Micron Accused Products, '731 HPE Accused Products, '731 Lenovo Accused Products, and '731 Supermicro Accused Products can be used in an infringing manner. *See e.g.*, **Exhibit 15** (<https://www.micron.com/products/memory/dram-modules>); **Exhibit** **36**

(https://www.micron.com/sales-support/design-tools);	Exhibit	37
(https://www.micron.com/products/memory/dram-components);	Exhibit	38
(https://www.micron.com/products/memory/dram-components/ddr5-sdram);	Exhibit	39
(https://www.youtube.com/watch?v=rq8sYZEMdAw);	Exhibit	40
(https://www.supermicro.com/en/products/aplus);	Exhibit	41
(https://www.marketingtechpages.com/supermicro-h14-and-h13-amd-servers/supermicro-h14-h13-amd-servers);	Exhibit	42
(https://support.hpe.com/hpesc/public/docDisplay?docId=sd00002129en_us&docLocale=en_US);	Exhibit 43	(https://www.hpe.com/us/en/compute/hpe-proliant-compute.html); Exhibit 44
(https://www.hpe.com/us/en/collaterals/collateral.a50004302enw.html);	Exhibit	45
(https://lenovopress.lenovo.com/lp1618-introduction-to-ddr5-memory).	Through this	

documentation promoting their products' DRAM modules and components, Respondents encourage and instruct their customers to use their products in a manner that infringes the '731 Patent.

6.17. Additionally, Respondents induce infringement of the '731 Patent by their customers by configuring one or more of the '731 Micron Accused Products, '731 HPE Accused Products, '731 Lenovo Accused Products, and '731 Supermicro Accused Products to operate in a manner that Micron knows infringes the '731 Patent. Respondents further provide their customers with all the requisite hardware, software, documentation, and instructions to operate these products in an infringing manner. For example, Respondents provide these products to customers and, upon information and belief, encourages and instructs those customers to use these products by making available to them the aforementioned resources and documentation, design tools, manuals, user guides, and the like.

6.18. Through the above acts, Respondents encourage and instruct their customers to use their products in a manner that infringes the '731 Patent.

6.19. Upon information and belief, Respondents contribute to the infringement of one or more of the Asserted Claims of the '731 Patent by offering to sell or selling and/or importing a patented component, constituting a material part of the invention, knowing the same to be especially made or especially adapted for use in an infringement and not a staple article or commodity of commerce suitable for substantial non-infringing use. The '731 Micron Accused Products, '731 HPE Accused Products, '731 Lenovo Accused Products, and '731 Supermicro Accused Products are a material part of practicing at least claims 1–13 and 16–18 of the '731 Patent, have no substantial non-infringing uses, are not a staple article of commerce, and are specially made and adapted for use in an infringing manner.

B. Infringement of U.S. Patent No. 10,217,523

1. Direct Infringement

6.20. A representative claim chart comparing certain claims of the '523 Patent to the '523 Accused Products is attached as **Exhibit 12**.

a. Micron

6.21. Upon information and belief, Micron imports, sells for importation, and/or sells after importation into the U.S., Accused Products that infringe the '523 Patent, literally or under the doctrine of equivalents.

6.22. The Accused Products include at least the following products that infringe at least claims 1–15, 17, 18 of the '523 Patent, literally or under the doctrine of equivalents: Micron's DDR5 memory modules, including, but not limited to, MRDIMMs, and any other Micron memory products that are structured and operated in materially the same way in material aspects (collectively, the "'523 Micron Accused Products"). Netlist has not yet had the benefit of

discovery, and thus this identification of models or types of products is not intended to limit the scope of this Investigation. Any remedy should extend to all infringing products.

2. Indirect Infringement

6.23. Upon information and belief, Respondents knowingly and intentionally induce users of one or more of the '523 Micron Accused Products, '523 HPE Accused Products, '523 Lenovo Accused Products, and '523 Supermicro Accused Products, to directly infringe one or more claims of the Asserted Patents by encouraging, instructing, and aiding one or more persons in the United States, including, but not limited to, their employees who test and operate these products at Respondents' direction, to make, use (including testing those devices and methods), sell, or offer to sell one or more of these products, during or after such article's importation into the United States, in a manner that infringes the '523 Patent.

6.24. Upon information and belief, Respondents were aware of the '523 Patent or acted with willful blindness as to its existence at least as a result of the filing of Netlist's parallel U.S. district court complaints alleging infringement of the Asserted Patents and/or the filing of this Complaint. *See* Section X.B, *infra*.

6.25. Upon information and belief, Respondents knew or should have known that their encouraging, instructing, and aiding of users of one or more of the '523 Micron Accused Products, '523 HPE Accused Products, '523 Lenovo Accused Products, and '523 Supermicro Accused Products in the United States in a manner that infringes the '523 Patent, including, but not limited to, Respondents' employees who test and operate these products at the direction of Respondents, to make, use (including testing those devices and methods), sell, or offer to sell one or more of these products, during or after such article's importation into the United States, would result in direct infringement and intended to cause those acts which constitute that direct infringement.

6.26. For example, Respondents provide significant support and documentation, such as manuals, product briefs, guides, webpages, and videos that demonstrate how the '523 Micron Accused Products, '523 HPE Accused Products, '523 Lenovo Accused Products, and '523 Supermicro Accused Products can be used in an infringing manner. *See e.g., Exhibit 15* (<https://www.micron.com/products/memory/dram-modules>); **Exhibit 36** (<https://www.micron.com/sales-support/design-tools>); **Exhibit 37** (<https://www.micron.com/products/memory/dram-components>); **Exhibit 38** (<https://www.micron.com/products/memory/dram-components/ddr5-sdram>); **Exhibit 39** (<https://www.youtube.com/watch?v=rq8sYZEMdAw>); **Exhibit 40** (<https://www.supermicro.com/en/products/aplus>); **Exhibit 41** (<https://www.marketingtechpages.com/supermicro-h14-and-h13-amd-servers/supermicro-h14-h13-amd-servers>); **Exhibit 42** (https://support.hpe.com/hpesc/public/docDisplay?docId=sd00002129en_us&docLocale=en_US); **Exhibit 43** (<https://www.hpe.com/us/en/compute/hpe-proliant-compute.html>); **Exhibit 44** (<https://www.hpe.com/us/en/collaterals/collateral.a50004302enw.html>); **Exhibit 45** (<https://lenovopress.lenovo.com/lp1618-introduction-to-ddr5-memory>). Through this documentation promoting their products' DRAM modules and components, Respondents encourage and instruct their customers to use their products in a manner that infringes the '523 Patent.

6.27. Additionally, Respondents induce infringement of the '523 Patent by their customers by configuring one or more of the '523 Micron Accused Products, '523 HPE Accused Products, '523 Lenovo Accused Products, and '523 Supermicro Accused Products to operate in a manner that Micron knows infringes the '523 Patent. Respondents further provide their customers

with all the requisite hardware, software, documentation, and instructions to operate these products in an infringing manner. For example, Respondents provide these products to customers and, upon information and belief, encourages and instructs those customers to use these products by making available to them the aforementioned resources and documentation, design tools, manuals, user guides, and the like.

6.28. Through the above acts, Respondents encourage and instruct their customers to use their products in a manner that infringes the '523 Patent.

6.29. Upon information and belief, Respondents contribute to the infringement of one or more of the Asserted Claims of the '523 Patent by offering to sell or selling and/or importing a patented component, constituting a material part of the invention, knowing the same to be especially made or especially adapted for use in an infringement and not a staple article or commodity of commerce suitable for substantial non-infringing use. The '523 Micron Accused Products, '523 HPE Accused Products, '523 Lenovo Accused Products, and '523 Supermicro Accused Products are a material part of practicing at least claims 1–15, 17, 18 of the '523 Patent, have no substantial non-infringing uses, are not a staple article of commerce, and are specially made and adapted for use in an infringing manner.

C. Infringement of U.S. Patent No. 12,373,366

1. Direct Infringement

6.30. A representative claim chart comparing certain claims of the '366 Patent to the '366 Accused Products is attached as **Exhibit 13**.

a. Micron

6.31. Upon information and belief, Micron imports, sells for importation, and/or sells after importation into the U.S., Accused Products that infringe the '366 Patent, literally or under the doctrine of equivalents.

6.32. The Accused Products include at least the following products that infringe at least claims 1–14 and 16–28 of the '366 Patent, literally or under the doctrine of equivalents: Micron's DDR5 memory modules, including, but not limited to, RDIMMs and MRDIMMs, and any other Micron memory products that are structured and operated in materially the same way in material aspects (collectively, the "'366 Micron Accused Products"). Netlist has not yet had the benefit of discovery, and thus this identification of models or types of products is not intended to limit the scope of this Investigation. Any remedy should extend to all infringing products.

b. HPE

6.33. Upon information and belief, HPE imports, sells for importation, and/or sells after importation into the U.S., Accused Products that infringe the '366 Patent, literally or under the doctrine of equivalents.

6.34. The Accused Products include at least the following products that infringe at least claims 1–14 and 16–28 of the '366 Patent, literally or under the doctrine of equivalents at least by their incorporation, rebranding, or sale of the '366 Micron Accused Products: HPE P56152-001, and any other HPE memory products that are structured and operated in materially the same way in material aspects (collectively, the "'366 HPE Accused Products"). Netlist has not yet had the benefit of discovery, and thus this identification of models or types of products is not intended to limit the scope of this Investigation. Any remedy should extend to all infringing products.

c. Lenovo

6.35. Upon information and belief, Lenovo imports, sells for importation, and/or sells after importation into the U.S., Accused Products that infringe the '366 Patent, literally or under the doctrine of equivalents.

6.36. The Accused Products include at least the following products that infringe at least claims 1–14 and 16–28 of the '366 Patent, literally or under the doctrine of equivalents at least by their incorporation, rebranding, or sale of the '366 Micron Accused Products: Lenovo 4X77A77030, and any other Lenovo memory products that are structured and operated in materially the same way in material aspects (collectively, the “'366 Lenovo Accused Products”). Netlist has not yet had the benefit of discovery, and thus this identification of models or types of products is not intended to limit the scope of this Investigation. Any remedy should extend to all infringing products.

d. Supermicro

6.37. On information and belief, Supermicro imports, sells for importation, and/or sells after importation into the U.S., Accused Products that infringe the '366 Patent, literally or under the doctrine of equivalents.

6.38. The Accused Products include at least the following products that infringe at least claims 1–14 and 16–28 of the '366 Patent, literally or under the doctrine of equivalents at least by their incorporation, rebranding, or sale of the '366 Micron Accused Products: Supermicro MEM-DR516L-ER48, and any other Supermicro memory products that are structured and operated in materially the same way in material aspects (collectively, the “'366 Supermicro Accused Products”). Netlist has not yet had the benefit of discovery, and thus this identification of models or types of products is not intended to limit the scope of this Investigation. Any remedy should extend to all infringing products.

2. Indirect Infringement

6.39. Upon information and belief, Respondents knowingly and intentionally induce users of one or more of the '366 Micron Accused Products, '366 HPE Accused Products, '366 Lenovo Accused Products, and '366 Supermicro Accused Products, to directly infringe one or

more claims of the Asserted Patents by encouraging, instructing, and aiding one or more persons in the United States, including, but not limited to, their employees who test and operate these products at Respondents' direction, to make, use (including testing those devices and methods), sell, or offer to sell one or more of these products, during or after such article's importation into the United States, in a manner that infringes the '366 Patent.

6.40. Upon information and belief, Respondents were aware of the '366 Patent or acted with willful blindness as to its existence at least as a result of the filing of Netlist's parallel U.S. district court complaints alleging infringement of the Asserted Patents and/or the filing of this Complaint. *See* Section X.C, *infra*.

6.41. Upon information and belief, Respondents knew or should have known that their encouraging, instructing, and aiding of users of one or more of the '366 Micron Accused Products, '366 HPE Accused Products, '366 Lenovo Accused Products, and '366 Supermicro Accused Products in the United States in a manner that infringes the '366 Patent, including, but not limited to, Respondents' employees who test and operate these products at the direction of Respondents, to make, use (including testing those devices and methods), sell, or offer to sell one or more of these products, during or after such article's importation into the United States, would result in direct infringement and intended to cause those acts which constitute that direct infringement.

6.42. For example, Respondents provide significant support and documentation, such as manuals, product briefs, guides, webpages, and videos that demonstrate how the '366 Micron Accused Products, '366 HPE Accused Products, '366 Lenovo Accused Products, and '366 Supermicro Accused Products can be used in an infringing manner. *See e.g.*, **Exhibit 15** (<https://www.micron.com/products/memory/dram-modules>); **Exhibit 36**

(https://www.micron.com/sales-support/design-tools);	Exhibit	37
(https://www.micron.com/products/memory/dram-components);	Exhibit	38
(https://www.micron.com/products/memory/dram-components/ddr5-sdram);	Exhibit	39
(https://www.youtube.com/watch?v=rq8sYZEMdAw);	Exhibit	40
(https://www.supermicro.com/en/products/aplus);	Exhibit	41
(https://www.marketingtechpages.com/supermicro-h14-and-h13-amd-servers/supermicro-h14-h13-amd-servers)	;	Exhibit 42
(https://support.hpe.com/hpesc/public/docDisplay?docId=sd00002129en_us&docLocale=en_US);	Exhibit 43	(https://www.hpe.com/us/en/compute/hpe-proliant-compute.html); Exhibit 44
(https://www.hpe.com/us/en/collaterals/collateral.a50004302enw.html);	Exhibit	45
(https://lenovopress.lenovo.com/lp1618-introduction-to-ddr5-memory).	Through this	

documentation promoting their products' DRAM modules and components, Respondents encourage and instruct their customers to use their products in a manner that infringes the '366 Patent.

6.43. Additionally, Respondents induce infringement of the '366 Patent by their customers by configuring one or more of the '366 Micron Accused Products, '366 HPE Accused Products, '366 Lenovo Accused Products, and '366 Supermicro Accused Products to operate in a manner that Micron knows infringes the '366 Patent. Respondents further provide their customers with all the requisite hardware, software, documentation, and instructions to operate these products in an infringing manner. For example, Respondents provide these products to customers and, upon information and belief, encourages and instructs those customers to use these products by making available to them the aforementioned resources and documentation, design tools, manuals, user guides, and the like.

6.44. Through the above acts, Respondents encourage and instruct their customers to use their products in a manner that infringes the '366 Patent.

6.45. Upon information and belief, Respondents contribute to the infringement of one or more of the Asserted Claims of the '366 Patent by offering to sell or selling and/or importing a patented component, constituting a material part of the invention, knowing the same to be especially made or especially adapted for use in an infringement and not a staple article or commodity of commerce suitable for substantial non-infringing use. The '366 Micron Accused Products, '366 HPE Accused Products, '366 Lenovo Accused Products, and '366 Supermicro Accused Products are a material part of practicing at least claims 1–14 and 16–28 of the '366 Patent, have no substantial non-infringing uses, are not a staple article of commerce, and are specially made and adapted for use in an infringing manner.

D. Infringement of U.S. Patent No. 12,675,407

1. Direct Infringement

6.46. A representative claim chart comparing certain claims of the '407 Patent to the '407 Accused Products is attached as **Exhibit 14**.

a. Micron

6.47. Upon information and belief, Micron imports, sells for importation, and/or sells after importation into the U.S., Accused Products that infringe the '407 Patent, literally or under the doctrine of equivalents.

6.48. The Accused Products include at least the following products that infringe at least claims 1–20 of the '407 Patent, literally or under the doctrine of equivalents: Micron's DDR5 memory modules, including, but not limited to, RDIMMs and MRDIMMs, and any other Micron memory products that are structured and operated in materially the same way in material aspects (collectively, the "'407 Micron Accused Products"). Netlist has not yet had the benefit of

discovery, and thus this identification of models or types of products is not intended to limit the scope of this Investigation. Any remedy should extend to all infringing products.

b. HPE

6.49. Upon information and belief, HPE imports, sells for importation, and/or sells after importation into the U.S., Accused Products that infringe the '407 Patent, literally or under the doctrine of equivalents.

6.50. The Accused Products include at least the following products that infringe at least claims 1–20 of the '407 Patent, literally or under the doctrine of equivalents at least by their incorporation, rebranding, or sale of the '407 Micron Accused Products: HPE P56152-001, and any other HPE memory products that are structured and operated in materially the same way in material aspects (collectively, the “'407 HPE Accused Products”). Netlist has not yet had the benefit of discovery, and thus this identification of models or types of products is not intended to limit the scope of this Investigation. Any remedy should extend to all infringing products.

c. Lenovo

6.51. Upon information and belief, Lenovo imports, sells for importation, and/or sells after importation into the U.S., Accused Products that infringe the '407 Patent, literally or under the doctrine of equivalents.

6.52. The Accused Products include at least the following products that infringe at least claims 1–20 of the '407 Patent, literally or under the doctrine of equivalents at least by their incorporation, rebranding, or sale of the '407 Micron Accused Products: Lenovo 4X77A77030, and any other Lenovo memory products that are structured and operated in materially the same way in material aspects (collectively, the “'407 Lenovo Accused Products”). Netlist has not yet had the benefit of discovery, and thus this identification of models or types of products is not

intended to limit the scope of this Investigation. Any remedy should extend to all infringing products.

d. Supermicro

6.53. On information and belief, Supermicro imports, sells for importation, and/or sells after importation into the U.S., Accused Products that infringe the '407 Patent, literally or under the doctrine of equivalents.

6.54. The Accused Products include at least the following products that infringe at least claims 1–20 of the '407 Patent, literally or under the doctrine of equivalents at least by their incorporation, rebranding, or sale of the '407 Micron Accused Products: Supermicro MEM-DR516L-ER48, and any other Supermicro memory products that are structured and operated in materially the same way in material aspects (collectively, the "'407 Supermicro Accused Products"). Netlist has not yet had the benefit of discovery, and thus this identification of models or types of products is not intended to limit the scope of this Investigation. Any remedy should extend to all infringing products.

2. Indirect Infringement

6.55. Upon information and belief, Respondents knowingly and intentionally induce users of one or more of the '407 Micron Accused Products, '407 HPE Accused Products, '407 Lenovo Accused Products, and '407 Supermicro Accused Products, to directly infringe one or more claims of the Asserted Patents by encouraging, instructing, and aiding one or more persons in the United States, including, but not limited to, their employees who test and operate these products at Respondents' direction, to make, use (including testing those devices and methods), sell, or offer to sell one or more of these products, during or after such article's importation into the United States, in a manner that infringes the '407 Patent.

6.56. Upon information and belief, Respondents were aware of the '407 Patent or acted

with willful blindness as to its existence at least as a result of the filing of Netlist's parallel U.S. district court complaints alleging infringement of the Asserted Patents and/or the filing of this Complaint. *See* Section X.D, *infra*.

6.57. Upon information and belief, Respondents knew or should have known that their encouraging, instructing, and aiding of users of one or more of the '407 Micron Accused Products, '407 HPE Accused Products, '407 Lenovo Accused Products, and '407 Supermicro Accused Products in the United States in a manner that infringes the '407 Patent, including, but not limited to, Respondents' employees who test and operate these products at the direction of Respondents, to make, use (including testing those devices and methods), sell, or offer to sell one or more of these products, during or after such article's importation into the United States, would result in direct infringement and intended to cause those acts which constitute that direct infringement.

6.58. For example, Respondents provide significant support and documentation, such as manuals, product briefs, guides, webpages, and videos that demonstrate how the '407 Micron Accused Products, '407 HPE Accused Products, '407 Lenovo Accused Products, and '407 Supermicro Accused Products can be used in an infringing manner. *See e.g.*, **Exhibit 15**

(<https://www.micron.com/products/memory/dram-modules>); **Exhibit 36**

(<https://www.micron.com/sales-support/design-tools>); **Exhibit 37**

(<https://www.micron.com/products/memory/dram-components>); **Exhibit 38**

(<https://www.micron.com/products/memory/dram-components/ddr5-sdram>); **Exhibit 39**

(<https://www.youtube.com/watch?v=rq8sYZEMdAw>); **Exhibit 40**

(<https://www.supermicro.com/en/products/aplus>); **Exhibit 41**

(<https://www.marketingtechpages.com/supermicro-h14-and-h13-amd-servers/supermicro-h14->

h13-amd-servers);

Exhibit

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(https://support.hpe.com/hpesc/public/docDisplay?docId=sd00002129en_us&docLocale=en_US); **Exhibit 43** (<https://www.hpe.com/us/en/compute/hpe-proliant-compute.html>); **Exhibit 44** (<https://www.hpe.com/us/en/collaterals/collateral.a50004302enw.html>); **Exhibit 45** (<https://lenovopress.lenovo.com/lp1618-introduction-to-ddr5-memory>). Through this documentation promoting their products' DRAM modules and components, Respondents encourage and instruct their customers to use their products in a manner that infringes the '407 Patent.

6.59. Additionally, Respondents induce infringement of the '407 Patent by their customers by configuring one or more of the '407 Micron Accused Products, '407 HPE Accused Products, '407 Lenovo Accused Products, and '407 Supermicro Accused Products to operate in a manner that Micron knows infringes the '407 Patent. Respondents further provide their customers with all the requisite hardware, software, documentation, and instructions to operate these products in an infringing manner. For example, Respondents provide these products to customers and, upon information and belief, encourages and instructs those customers to use these products by making available to them the aforementioned resources and documentation, design tools, manuals, user guides, and the like.

6.60. Through the above acts, Respondents encourage and instruct their customers to use their products in a manner that infringes the '407 Patent.

6.61. Upon information and belief, Respondents contribute to the infringement of one or more of the Asserted Claims of the '407 Patent by offering to sell or selling and/or importing a patented component, constituting a material part of the invention, knowing the same to be especially made or especially adapted for use in an infringement and not a staple article or

commodity of commerce suitable for substantial non-infringing use. The '407 Micron Accused Products, '407 HPE Accused Products, '407 Lenovo Accused Products, and '407 Supermicro Accused Products are a material part of practicing at least claims 1–20 of the '407 Patent, have no substantial non-infringing uses, are not a staple article of commerce, and are specially made and adapted for use in an infringing manner.

VII. SPECIFIC INSTANCES OF UNFAIR IMPORTATION AND SALE

A. Micron

7.1. On information and belief, Micron is importing, selling for importation, and/or selling within the U.S. after importation, certain DRAM devices, and/or products containing the same, such as servers and computing systems, and/or components thereof. The specific instances set forth below are representative examples of Micron's unlawful importation, sale for importation, and/or sales within the U.S. after importation of infringing products.

7.2. Micron's Accused Products are manufactured and/or assembled at foreign facilities:

Location	Principal Operations
Taiwan	R&D, wafer fabrication, component assembly and test, module assembly and test
Singapore	R&D, wafer fabrication, component assembly and test, module assembly and test
United States	R&D, wafer fabrication, reticle manufacturing
Japan	R&D, wafer fabrication
Malaysia	Component assembly and test, module assembly and test
China	Component assembly and test, module assembly and test
India	Component assembly and test, module assembly and test

See **Exhibit 16** (Micron Technology SEC 10-K 2025) at 47-48. For example, Micron's Hiroshima, Japan and Taiwan facilities are being modernized to improve production capacity for DRAM products to meet rising market demand. *Id.* at 48. The Micron Accused Products are then sold for importation into the U.S., imported into the U.S., and/or sold within the U.S. after importation by

Micron and authorized retailers and distributors. All memory modules and SSDs are assembled in Malaysia and all infringing products are imported.

7.3. Micron's overseas manufacturing sites for memory modules are largely based in Asia. See **Exhibit 104** (<https://www.investing.com/news/stock-market-news/exclusivemicron-to-impose-tariff-related-surcharge-on-some-products-from-april-9-sources-say-3973604>). A third-party website that aggregates importation data shows that Micron has imported Supermicro DDR5 DRAM memory modules into the United States. **Exhibit 105** (<https://www.volza.com/p/module/buyers/buyers-in-united-states/hsn-code-8473/>).

7.4. A large number of models of Micron's Accused Products are available for purchase in the U.S. For example, as shown on Micron's website, many models of Micron's Accused DDR5 DIMMs, including RDIMMs and MRDIMMs, are available for purchase in the U.S. **Exhibit 46** (<https://www.micron.com/products>); **Exhibit 47** (<https://www.micron.com/products/memory/dram-modules/rdimm/part-catalog>); **Exhibit 48** (<https://www.micron.com/products/memory/dram-modules/mrdimm/part-catalog>).

7.5. Many models of Micron's Accused Products are also available for purchase in the United States through various third parties, both in-store and through their websites, including Arrow Electronics, AVNET, AVNET Newark, D&H, Digi-Key, Edge Electronics Inc., Mouser Electronics Inc, TD Synnex, and WPG Americas Inc. **Exhibit 49** (<https://www.micron.com/sales-support/sales-network/authorized-distributors#accordion-d99cfc348d-item-9e9e725455>).

7.6. The accused **MTC20F2085S1RC48BAY** is imported, sold for importation, and/or sold within the U.S. after importation. For example, it is available for purchase on ServerSupply.com where it is sold as "Micron MTC20F2085S1RC48BAY 32GB DDR5 4800MT/s PC5-38400 ECC RDIMM Memory." **Exhibit 50**

(https://www.serversupply.com/MEMORY/PC5-38400/32GB/MICRON/MTC20F2085S1RC48BAY_382338.htm).

7.7. A Micron **MTC20F2085S1RC48BAY** 32GB DDR5 4800MT/s PC5-38400 ECC RDIMM Memory was purchased in the U.S. for delivery in Washington, D.C. on July 9, 2026. The purchased Micron MTC20F2085S1RC48BAY further confirms that the product was manufactured in Malaysia. **Exhibit 51** at 6 (Importation evidence for July 9, 2026 purchase of Micron DDR5 RDIMM (MTC20F2085S1RC48BAY)).

7.8. The accused **MTC20F2085S1HC88XD1** is imported, sold for importation, and/or sold within the U.S. after importation. For example, it is available for purchase on ServerSupply.com where it is sold as “Micron MTC20F2085S1HC88XD1 32GB (1x32GB) PC5-70400 DDR5-8800MT/s SDRAM Dual Rank x4 ECC Registered CL36 287-pin MRDIMM Memory Module for Server.” **Exhibit 52** (https://www.serversupply.com/MEMORY/PC5-70400/32GB/MICRON/MTC20F2085S1HC88XD1_397299.htm).

7.9. A Micron **MTC20F2085S1HC88XD1** 32GB DDR5 8800MT/s PC5-70400 ECC MRDIMM Memory was purchased in the U.S. for delivery in Washington, D.C. on July 9, 2026. The purchased Micron MTC20F2085S1HC88XD1 further confirms that the product was manufactured in Malaysia. **Exhibit 53** at 6 (Importation evidence for July 9, 2026 purchase of Micron DDR5 MRDIMM (MTC20F2085S1HC88XD1)).

7.10. The accused **MTC20F2085S1RC56BD1** is imported, sold for importation, and/or sold within the U.S. after importation. In particular, as discussed below, the MTC20F2085S1RC56BD1 is incorporated, rebranded, or sold as the HPE accused product sold as “P56152-001 HPE 32GB (1x32GB) Dual Rank x8 DDR5-4800 CAS-40-39-39 EC8 Registered

Smart Memory.” Evidence of specific importation for this product can be found in Section VII.B, *infra*.

7.11. The accused **MTC20F1045S1RC48BA2** is imported, sold for importation, and/or sold within the U.S. after importation. In particular, as discussed below, the MTC20F1045S1RC48BA2 is incorporated, rebranded, or sold as the Lenovo accused product sold as “4X77A77030 LENOVO 32GB (1x32GB) 1Rx4 PC5-4800B RDIMM SERVER MEMORY 03KL457 New.” Evidence of specific importation for this product can be found in Section VII.C, *infra*.

7.12. The accused **MTC10F1084S1RC48BA1** is imported, sold for importation, and/or sold within the U.S. after importation. In particular, as discussed below, the MTC10F1084S1RC48BA1 is incorporated, rebranded, or sold as the Supermicro accused product sold as “Micron MTC10F1084S1RC48BA1 16GB DDR5-4800 PC5-38400R EC8 RDIMM Server Memory RAM.” Evidence of specific importation for this product can be found in Section VII.D, *infra*.

B. HPE

7.13. Upon information and belief, HPE is importing, selling for importation, and/or selling within the U.S. after importation, certain DRAM devices, and/or products containing the same, such as servers and computing systems, and/or components thereof. The specific instance set forth below is a representative example of HPE’s unlawful importation, sale for importation, and/or sales within the U.S. after importation of infringing products.

7.14. The accused **MTC20F2085S1RC56BD1** is imported, sold for importation, and/or sold within the U.S. after importation. For example, it is available for purchase on GlobalOneTechnology.com where it is rebranded and/or certified to be sold as “P56152-001 HPE 32GB (1x32GB) Dual Rank x8 DDR5-4800 CAS-40-39-39 EC8 Registered Smart Memory.”

Exhibit 54 (<https://www.globalonetechnology.com/p56152-001.htm>). An HPE P56152-001 was purchased in the U.S. for delivery in Washington, D.C. on July 9, 2026. The purchased HPE P56152-001 (corresponding to the accused Micron product MTC20F2085S1RC56BD1) further confirms it was manufactured in Malaysia. **Exhibit 55** at 6 (Importation evidence for July 9, 2026 purchase of HPE P56152-001, Micron DDR5 RDIMM (MTC20F2085S1RC56BD1)).

C. Lenovo

7.15. Upon information and belief, Lenovo is importing, selling for importation, and/or selling within the U.S. after importation, certain DRAM devices, and/or products containing the same, such as servers and computing systems, and/or components thereof. The specific instance set forth below is a representative example of Lenovo's unlawful importation, sale for importation, and/or sales within the U.S. after importation of infringing products.

7.16. The accused **MTC20F1045S1RC48BA2** is imported, sold for importation, and/or sold within the U.S. after importation. For example, it is available for purchase on eBay.com where it is rebranded and/or certified to be sold as "4X77A77030 LENOVO 32GB (1x32GB) 1Rx4 PC5-4800B RDIMM SERVER MEMORY 03KL457 New." **Exhibit 56** (<https://www.ebay.com/itm/287026015862>). A Lenovo 4X77A77030 was purchased in the U.S. for delivery in Washington, D.C. on July 9, 2026. The purchased Lenovo 4X77A77030 (corresponding to the accused Micron product MTC20F1045S1RC48BA2) further confirms it was manufactured in China. **Exhibit 57** at 4 (Importation evidence for July 9, 2026 purchase of Lenovo 4X77A77030, Micron DDR5 RDIMM (MTC20F1045S1RC48BA2)).

D. Supermicro

7.17. Upon information and belief, Supermicro is importing, selling for importation, and/or selling within the U.S. after importation, certain DRAM devices, and/or products containing the same, such as servers and computing systems, and/or components thereof. The specific

instance set forth below is a representative example of Supermicro's unlawful importation, sale for importation, and/or sales within the U.S. after importation of infringing products.

7.18. The accused **MTC10F1084S1RC48BA1** is imported, sold for importation, and/or sold within the U.S. after importation. For example, it is available for purchase on eBay.com where it is rebranded and/or certified to be sold as "Micron MTC10F1084S1RC48BA1 16GB DDR5-4800 PC5-38400R EC8 RDIMM Server Memory RAM." **Exhibit 58** (<https://www.ebay.com/itm/137450146407>). Samples of a Supermicro MEM-DR516L-ER48 were purchased in the U.S. for delivery in Irvine, California on July 7, 2026. The purchased samples of Supermicro MEM-DR564L-CL01-ER64 (corresponding to the accused Micron product MTC10F1084S1RC48BA1) further confirm that they were manufactured in either China or Malaysia. **Exhibit 59** at 4, 9, 14, 19 (Importation evidence for July 7, 2026 purchase of Supermicro MEM-DR516L-ER48, Micron DDR5 RDIMM (MTC10F1084S1RC48BA1)).

7.19. Supermicro has maintained manufacturing and production facilities outside the U.S., including China and more recently in Taiwan. **Exhibit 106** (<https://www.taiwannews.com.tw/news/3693653>). A third-party website that aggregates importation data shows that Supermicro has imported Supermicro DDR5 DRAM memory modules into the United States. **Exhibit 105** (<https://www.volza.com/p/module/buyers/buyers-in-united-states/hsn-code-8473/>).

7.20. In an October 28, 2025 press release, Supermicro announced recent results from a benchmark test indicating collaboration with Micron, including for storage servers that contain Micron DDR5 RDIMMs. **Exhibit 107** (<https://ir.supermicro.com/news/news-details/2025/Supermicro-Intel-and-Micron-Collaborate-on-Record-Breaking-Results-for-the-STAC-M3-Quantitative-Trading-Benchmark/default.aspx>).

VIII. HARMONIZED TARIFF SCHEDULE ITEM NUMBERS

8.1. Upon information and belief, the Harmonized Tariff Schedule of the U.S. item numbers under which the infringing certain DRAM devices, and/or products containing the same, and/or components thereof may be imported into the U.S. include at least HTSUS 8473.30.11.40 and 8542.32.00.36. These classifications are intended for illustration only and are not intended to be restrictive of the accused products or of products subject to the relief requested.

IX. THE DOMESTIC INDUSTRY

9.1. In accordance with Section 337(a)(2) and (a)(3), a domestic industry exists in the U.S. in connection with the Asserted Patents comprising significant investments in plant and equipment, and significant employment of labor and capital in the U.S. in products that practice the Asserted Patents. The Asserted Patents are practiced by at least the following Domestic Industry Products identified in the table below. Additional Domestic Industry Products may be identified following discovery in the investigation.

U.S. Patent No.	Existing Domestic Industry Products
U.S. Patent No. 10,025,731	• Netlist DDR5 VLP RDIMMs • Netlist Lightning DDR5 RDIMMs • Netlist DDR5 LP MRDIMMs • SK hynix RDIMMs and MRDIMMs • Samsung DDR5 RDIMMs and MRDIMMs
U.S. Patent No. 10,217,523	• Netlist DDR5 LP MRDIMMs • SK hynix MRDIMMs • Samsung DDR5 MRDIMMs
U.S. Patent No. 12,373,366	• Netlist DDR5 VLP RDIMMs • Netlist Lightning DDR5 RDIMMs • Netlist DDR5 LP MRDIMMs • SK hynix RDIMMs and MRDIMMs • Samsung DDR5 RDIMMs and MRDIMMs
U.S. Patent No. 12,675,407	• Netlist DDR5 VLP RDIMMs

	• Netlist Lightning DDR5 RDIMMs • Netlist DDR5 LP MRDIMMs • SK hynix RDIMMs and MRDIMMs • Samsung DDR5 RDIMMs and MRDIMMs
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A. The Economic Prong of the Domestic Industry Requirement Is Satisfied

9.2. Pursuant to Commission Rule 210.12(a)(6)(i), a domestic industry as defined in Section 337(a)(3) exists in the U.S. as the result of Netlist and/or its licensees SK hynix's and/or Samsung's domestic activities related to the technology of the Asserted Patents and products that practice the Asserted Patents. With respect to Netlist, a domestic industry is also in the process of being established.

9.3. Pursuant to Commission Rule 210.12(a)(9)(iv), Complainant has attached a copy of the agreement that includes a license from Netlist to SK hynix. **Exhibit 60.**

9.4. Pursuant to Commission Rule 210.12(a)(9)(iv), Complainant has attached a copy of the agreement that includes a license from Netlist to Samsung. **Exhibit 108.**

9.5. As set forth below, Netlist and/or its licensees SK hynix and/or Samsung have made significant investments in (i) plant and equipment, and (ii) labor or capital in the U.S. These investments relate to, among other things, the design, research and development, engineering, testing, regulatory compliance, sales, marketing, distribution, warehousing, quality control, warranty and repair, and customer service and support of the Domestic Industry Products. These qualitatively and quantitatively significant investments have continued through the filing of this Complaint at materially similar scope, and are expected to continue into the future.

1. Netlist's U.S. Activities and Investments

9.6. As stated above, Netlist is a corporation organized and existing under the laws of the State of Delaware, with a principal place of business at 111 Academy Way, Suite 100, Irvine,

California 92617. Netlist designs and manufactures controller and software-based memory solutions that are sold in the server, high-performance computing, and communications markets.

9.7. The Netlist Domestic Industry Products include at least Netlist DDR5 VLP RDIMM, Netlist Lightning DDR5 RDIMM, and Netlist DDR5 LP MRDIMM. *See Exhibit 61.* Each of these products is covered by one or more claims of the Asserted Patents.

9.8. Netlist has made, and continues to make, significant and substantial investments in connection with technology and articles that practice the Asserted Patents, including the Domestic Industry Products. Indeed, an administrative law judge has twice previously concluded that Netlist established a domestic industry based on its significant domestic investments in the United States. *See Certain Memory Modules & Components Thereof*, Inv. No. 337-TA-1089, Initial Determination at 139–56 (Oct. 19, 2019); *Certain Memory Modules & Components Thereof*, Inv. No. 337-TA-1023, Initial Determination at 153–65 (Nov. 14, 2017). Those investments related to earlier-generation Netlist products that were the foundation for the technologies claimed in several of the Asserted Patents here.

9.9. As a result of these continuing and planned future investments, a domestic industry exists under Section 337(a)(3)(A) due to Netlist’s significant investment in plant and equipment in the Netlist Domestic Industry Products; under Section 337(a)(3)(B) due to Netlist’s significant investment in labor or capital in the Netlist Domestic Industry Products; and under Section 337(a)(3)(C) due to Netlist’s significant investment in patent exploitation.

9.10. Netlist has made and continues to make significant investments in plant and equipment for engineering, sales, and marketing activities related to the Netlist Domestic Industry Products. Netlist’s investments in plant and equipment since 2021 have accounted for millions of dollars in expenses. Detailed confidential information about Netlist’s significant investments for

the Netlist Domestic Industry Products are set forth in **Exhibit 62**. For example, Netlist operates U.S. facilities located in Irvine, California where Netlist performs activities that support the Netlist Domestic Industry Products.

9.11. Netlist also has made and continues to make significant investments in labor or capital in the U.S. for the Netlist Domestic Industry Products. Netlist's investments in labor or capital since 2021 have accounted for millions of dollars in expenses. Detailed confidential information about Netlist's significant investments in labor or capital for the Netlist Domestic Industry Products are set forth in **Exhibit 62**. For example, Netlist employs individuals who, among other tasks, work on research design, service, repair, maintenance, warranty, training, quality assurance, installation, and customer support related to the Netlist Domestic Industry Product in the U.S.

9.12. The expenditures described above with respect to plant and equipment, and labor or capital can also be described as Netlist's U.S. investments in research and development and engineering of the Netlist Domestic Industry Products. These allocated costs relate to Netlist's efforts to design and develop the Netlist Domestic Industry Products, research and establish a market for the Netlist Domestic Industry Products, and Netlist's patented technology that the products contain.

9.13. Additionally, Netlist also expects to expand manufacturing of the Netlist Domestic Industry Products in the U.S., and is taking the necessary tangible steps to establish a domestic industry relating to future Netlist Domestic Industry Products in the U.S. There is a significant likelihood that the domestic industry requirement will be satisfied in the future through these activities as well..

2. Licensee SK hynix's U.S. Activities and Investments

9.14. SK hynix is a Korean corporation with a principal place of business at 2091, Gyeongchung-daero, Bubal-eup, Icheon-si, Gyeonggi-do, Korea. **Exhibit 63** (<https://www.skhynix.com/company/UI-FR-CP02/>). SK hynix sells memory semiconductor products, including DRAM technologies.

9.15. The SK Domestic Industry Products include at least SK hynix RDIMMs and MRDIMMs manufactured and offered for sale by SK hynix. Each of these products is covered by one or more claims of the Asserted Patents.

9.16. On April 5, 2021, Netlist entered into a Strategic Product Supply and License Agreement with SK hynix, which granted SK hynix a license to Netlist's patents and permitted it to make, use, and sell products that practice Netlist's patents. SK hynix sells RDIMM and MRDIMM products in the U.S. pursuant to the terms of that agreement. **Exhibit 60.**

9.17. For instance, at the HPE Discover 2025 conference held in Las Vegas from June 23–26, 2025, SK hynix displayed its “lineup of DDR5-based memory modules,” including RDIMM and MRDIMM technology. **Exhibit 64** (<https://www.techpowerup.com/338771/sk-hynix-showcases-server-and-storage-tech-strategies-at-hpe-discover-2025>).

9.18. Across SK hynix's entire business, the U.S. is a significant market for SK hynix. For example, in 2025, SK hynix reported 66.9 trillion KRW (or approximately 48 billion USD) in revenue in the U.S., which was 69% of its revenue worldwide. **Exhibit 65** (SK Hynix 2025 Consolidated Financial Statements) at 78. Further, SK hynix's North American sales subsidiary “SK hynix America” recorded revenue of 58.6933 trillion KRW (approximately 40.47 billion USD) in 2025, which reflected a 75.4% surge compared to the 2024 revenue. **Exhibit 66** (SK hynix America Revenue Soars 75% in One Year, <https://www.businesskorea.co.kr/news/articleView.html?idxno=264447>).

9.19. A significant portion of SK hynix’s revenues is attributable to the SK Domestic Industry Products. For instance, in the first quarter of FY 2026, SK hynix reported record quarterly revenue of approximately KRW 52.58 trillion (approximately \$34.7 billion USD), representing a roughly 60% increase quarter-over-quarter and a 198% increase year-over-year, driven by strong DRAM performance and higher average selling prices, with additional contributions from NAND price increases. **Exhibit 67** (SK hynix FY2026 Q1 Earnings Results, <https://www.skhynix.com/ir/UI-FR-IR06/>) at 4.

9.20. SK hynix publishes quarterly earnings releases that identify its quarterly sales revenue by business segment. **Exhibits 67-87** (SK Hynix Quarterly Earnings Releases). These identify both revenue by product (e.g., DRAM, NAND, and others), and also revenue by application (e.g., server within DRAM). SK hynix’s server DRAM quarterly sales revenue for 2021-Q2 2026 are set forth in the table below:

WW Server DRAM Sales Revenue (million KRW)	2021	2022	2023	2024	2025	2026⁴
Q1 (million KRW)	2480248	3160560	1180416	3032920	4233360	20504640
Q2 (million KRW)	3014024	3535616	905944	4335672	5135592	21072509
Q3 (million KRW)	3352620	3163104	2429688	4243879.5	6674577	
Q4 (million KRW)	3515068	2301600	2939560	5119653	9979408	
Annual WW Server DRAM Sales Revenue (million KRW)	12361960	12160880	7455608	16732124.5	26022937	

⁴ SK hynix’s Q1 2026 sales revenue was reported, but its Q2 2026 sales revenue is estimated based on the prior years’ average increase between Q1 to Q2.

9.21. The amount of SK hynix’s server DRAM sales revenue attributable to the U.S. can reasonably be approximated, through a conservative estimate, based on SK hynix’s U.S. vs. worldwide employee presence. SK hynix America, Inc., a wholly-owned U.S. subsidiary to SK hynix, has approximately 337 associated members identified as living in the U.S. based on its online LinkedIn profile. **Exhibit 98** (SK hynix America LinkedIn). In comparison to the approximately 35,549 employees worldwide as of 2025, U.S. employees comprise approximately 0.948% of SK hynix’s total employees worldwide. **Exhibit 88** (SK hynix West Lafayette Project Overview); **Exhibit 89** (SK hynix Adds More Than 2,000 Positions).

9.22. Estimating the amount of U.S. sales revenue attributable to the DI Products, which include types of DDR products within the broader category of DRAM products, requires further apportionment. Based on numbers reported by publicly available industry reports, approximately 58% of DRAM sales revenue is attributable to non-HBM DRAM products (i.e., DDR). **Exhibit 90** (SK hynix Set to Overtake Samsung).

9.23. Using the foregoing allocation methodology, an estimate of U.S. non-HBM DRAM sales revenue is set forth below:

Estimated SK Domestic Industry Product U.S. Sales Revenue

Estimated U.S. Non-HBM Server DRAM Sales Revenue (million USD)	2021	2022	2023	2024	2025	Q1 2026	Q2 2026
WW Server DRAM Sales Revenue (million KRW)	12361960	12160880	7455608	16732125	26022937	20504640	21072509
WW Server DRAM Sales Revenue (million USD ⁵)	8035.27	7904.57	4846.15	10875.88	16914.91	13328.01	13697.13

⁵ Conversion rate of 1 trillion KRW to 0.65 billion USD.

Estimated U.S. Server DRAM Sales Revenue (million USD)	76.17	74.93	45.94	103.10	160.35	126.35	129.85
Estimated U.S. Non-HBM Server DRAM Sales Revenue (million USD)	44.18	43.46	26.65	59.80	93.00	73.28	75.31

9.24. To the extent further allocation is needed to address the specific DDR type for each Asserted Patent because there are multiple types of DDR—for which RDIMM, MRDIMM, UDIMM, and SODIMM are the broad subcategories—a reasonable estimate of the sales revenue for any given type of DDR reflects a quarter of non-HBM DRAM sales revenue:

U.S. Patent No.	Existing Domestic Industry Products	Estimated DI Sales Revenue (million USD) for SK Domestic Industry Products From 2021 – Q2 2026
U.S. Patent No. 10,025,731	RDIMMs and MRDIMMs	207.84
U.S. Patent No. 10,217,523	MRDIMMs	103.92
U.S. Patent No. 12,373,366	RDIMMs and MRDIMMs	207.84
U.S. Patent No. 12,675,407	RDIMMs and MRDIMMs	207.84

9.25. SK hynix has made and continues to make significant investments in facilities and equipment in the U.S. for the SK Domestic Industry Products. For example, SK hynix maintains several facilities in the U.S., including an R&D and sales facility in San Jose, California and sales offices in Seattle, Washington; Austin, Texas; and Houston, Texas. *See Exhibit 91* (SK hynix Global Network R&D Office, <https://www.skhynix.com/company/UI-FR-CP06>); *Exhibit 92* (SK hynix Global Network Sales Office, <https://www.skhynix.com/company/UI-FR-CP06>).

9.26. SK hynix has made and continues to make significant investments in labor and capital in the U.S. for the SK Domestic Industry Products. As noted above, SK hynix, including through its U.S. subsidiary, employs at least hundreds of people in the U.S. **Exhibit 88** (SK hynix West Lafayette Project Overview); **Exhibit 98** (SK hynix America LinkedIn). For additional context and as part of the process for receiving funding under the CHIPS program, SK hynix submitted statements to the Department of Commerce representing that (i) “SK hynix ‘upstream’ activities in the U.S. semiconductor ecosystem resulted in, on an annual average between 2016 and 2020, ~\$9 billion in sales activity and ~\$5 billion in GDP, and supported more than 46,000 jobs in the United States” over that time period and that (ii) “on an annual average between 2016 and 2020, SK hynix products enabled ‘downstream’ activities that resulted in \$116 billion economic activity and \$70 billion in GDP, and supported more than 696,000 jobs in the United States.” **Exhibit 93** (SK hynix Department of Commerce Submission) at 2. These sales and labor investments were expected to increase in successive years based on the projected, increasing market revenues and demand for DRAM. *Id.* at 5.

9.27. The foregoing domestic investments are significant and substantial under Section 337, both in absolute terms and relative to Netlist’s overall operations. The domestic investments and activities are also vital to Netlist’s domestic business with respect to the SK Domestic Industry Products and represent significant added value. The domestic investments of SK hynix are likewise significant and substantial in both absolute and relative terms and vital to SK hynix’s domestic business with respect to the SK Domestic Industry Products and represent significant added value.

3. Licensee Samsung’s U.S. Activities and Investments

9.28. Samsung Electronics Co., Ltd. is a corporation based in Korea with its headquarters located at 129 Samsung-ro, Yeongtong-gu, Suwon, Gyeonggi-do, South Korea. **Exhibit 109**

(Samsung SEC Consolidated Financial Statements) at 17-18. Samsung Electronics Co., Ltd., with its subsidiaries, are involved in the research design, manufacture and sale of semiconductors. *Id.*; **Exhibit 110** (About Us – Samsung Semiconductor Global Newsroom).

9.29. The Samsung Domestic Industry Products include at least Samsung’s DDR5 RDIMMs and MRDIMMs manufactured and offered for sale by Samsung. Each of these products is covered by one or more claims of the Asserted Patents. For instance, in Q1 of 2026, Samsung reported 74.8 trillion KRW in worldwide memory sales (approximately \$2.57 billion USD), which include the Samsung Domestic Industry Products. **Exhibit 117** (Samsung Q1 2026 Quarterly Earnings Release).

9.30. On August 4, 2026, Netlist entered into a license agreement with Samsung, which granted Samsung a license to Netlist’s patents and permitted it to make, use, and sell products that practice Netlist’s patents. Samsung sells RDIMM and MRDIMM products in the U.S. pursuant to the terms of that agreement. **Exhibit 108**.

9.31. Samsung has made and continues to make significant investments in facilities and equipment in the U.S. for the Samsung Domestic Industry Products. Samsung has a number of offices located in the U.S. For example, Samsung Semiconductor, Inc., a U.S. subsidiary responsible for research and sales, has its headquarters and main office in San Jose, California in a facility over 1.1 million square feet. **Exhibit 111** (Samsung Buys 70K SF of Research Building). Recently, in March 2025, it purchased an adjacent, 70,700-square-foot building next to the SSI headquarters for \$27 million. *Id.* Other sales offices directed to the Memory Business are located in Houston, Raleigh, Seattle, San Diego, and Austin. **Exhibit 112** (Samsung Semiconductor Global Network – Americas). As another example, Samsung Austin Semiconductor, LLC, another U.S. subsidiary responsible for manufacturing, has two Texas fabrication facilities in Austin and

Taylor. The Austin facility, located at 12100 Samsung Blvd, Austin, Texas 78754, is 2.76 million square feet, and had \$10.96 billion in economic impact in 2024. **Exhibit 113** (Samsung Semiconductor Austin US Fabrication). As stated on Samsung’s website, it has “invested more than \$18 billion in operating two fabs at the Austin campus since 1996—making it one of the largest direct foreign investments in United States history.” *Id.* The Taylor facility, which broke ground in early 2022, reflected a total expected investment of \$17 billion (\$6 billion in buildings and real property, and \$11 billion in machinery and equipment), bringing Samsung’s “total investment in the U.S. to more than \$47 billion since beginning operations in the country in 1978, where the company now has over 20,000 employees across the country.” **Exhibit 114** (Samsung Electronics Announces New Advanced Semiconductor Fab Site); **Exhibit 115** (Samsung Semiconductor Taylor US Fabrication).

9.32. Samsung has made and continues to make significant investments in labor and capital in the U.S. for the Samsung Domestic Industry Products. For example, in 2024, Samsung reported that it had 12,235 employees in the U.S. **Exhibit 116** (Samsung End of 2024 Number of Employees in Each Country). A substantial number of Samsung personnel are located in the United States, reflecting significant investments labor and capital, facilities, and research and development.

9.33. Netlist’s licensees are expected to provide additional bases and supporting information during the course of discovery. For example, discovery may aid any additional allocation necessary for the research and development, manufacturing, and sales activities discussed above to the Samsung Domestic Industry Products for the relevant time period.

B. The Technical Prong of the Domestic Industry Requirement Is Satisfied

9.34. In accordance with Section 337(a)(2) and (a)(3), a domestic industry exists in the U.S. in connection with the Asserted Patents.

9.35. Claim charts and explanatory information for products and processes that practice at least one valid asserted claim of the Asserted Patents accompany this Complaint.

9.36. Netlist reserves the right to rely on additional claims of the Asserted Patents to support the technical prong of the domestic industry requirement.

9.37. Netlist reserves its right to update its list of domestic industry products, including in light of additional discovery.

9.38. **Exhibits 94 and 100** include claim charts that show how the '731 Domestic Industry Products practice at least one claim of the '731 Patent.

9.39. **Exhibits 95 and 101** include claim charts that show how the '523 Domestic Industry Products practice at least one claim of the '523 Patent.

9.40. **Exhibits 96 and 102** include claim charts that show how the '366 Domestic Industry Products practice at least one claim of the '366 Patent.

9.41. **Exhibits 97 and 103** include claim charts that show how the '407 Domestic Industry Products practice at least one claim of the '407 Patent.

X. RELATED LITIGATIONS

10.1. The '731, '523, and '366 Patents were the subject of a Section 337 Investigation at the International Trade Commission, filed on September 30, 2025 and naming Samsung Electronics America, Inc.; Samsung Electronics Co., Ltd.; Samsung Semiconductor, Inc.; Google LLC; and Super Micro Computer, Inc. as Respondents. *See Certain Dynamic Random Access Memory (DRAM) Devices, Products Containing the Same, and Component Thereof*, Inv. No. 337-TA-1472 (ITC). The parties recently reached settlement on August 4, 2026, and the investigation

is expected to be terminated.

10.2. Additional related litigations are identified below on a per-patent basis.

A. U.S. Patent No. 10,025,731

10.3. The '731 Patent is the subject of a civil action in the U.S. District Court for the Eastern District of Texas, filed on May 19, 2025 and naming Samsung Electronics America, Inc.; Samsung Electronics Co., Ltd.; and Samsung Semiconductor, Inc.; and Avnet, Inc. as defendants. The case was stayed on March 6, 2026 pending ITC Inv. No. 337-TA-1472. *See Netlist, Inc. v. Samsung Elecs. Co., Ltd.*, No. 2:25-cv-00557 (E.D. Tex.). The parties recently reached settlement on August 4, 2026, and the action is expected to be terminated.

10.4. The '731 Patent is the subject of a civil action in the U.S. District Court for the Eastern District of Texas, filed on May 19, 2025 and naming Micron Technology, Inc.; Micron Semiconductor Products, Inc.; Micron Technology Texas, LLC; and Avnet, Inc. as defendants. The case was transferred to the U.S. District Court for the District of Delaware on March 6, 2026. *See Netlist, Inc. v. Micron Tech., Inc.*, No. 2:25-cv-00558 (E.D. Tex.). The case was opened in the U.S. District Court for the District of Delaware on March 9, 2026. *See Netlist, Inc. v. Micron Tech., Inc.*, No. 1:26-cv-00246 (D. Del.).

10.5. The '731 Patent is the subject of a declaratory judgment action in the U.S. District Court for the District of Delaware, filed on July 10, 2025 by Micron Technology, Inc.; Micron Semiconductor Products, Inc.; and Micron Technology Texas, LLC against Netlist, seeking a declaratory judgment of non-infringement. This case was consolidated with *Netlist, Inc. v. Micron Tech., Inc.*, No. 1:26-cv-00246 (D. Del.), now the lead case, on May 22, 2026. *See Micron Tech., Inc. v. Netlist, Inc.*, No. 1:25-cv-00863 (D. Del.).

10.6. The '731 Patent is the subject of a petition for inter partes review filed by Samsung Electronics Co., Ltd. on August 29, 2025. The Board instituted the IPR on February 18, 2026.

See Samsung Elecs. Co., Ltd. v. Netlist, Inc., IPR2025-01431 (PTAB). The parties recently reached settlement on August 4, 2026, and the IPR is expected to be terminated.

B. U.S. Patent No. 10,217,523

10.7. The '523 Patent was the subject of a civil action in the U.S. District Court for the Western District of Texas, filed on March 17, 2020 and naming SK hynix Inc. and SK hynix America Inc. as defendants. The case was voluntarily dismissed following the parties' settlement on May 10, 2021. *See Netlist, Inc. v. SK hynix Inc.*, No. 6:20-cv-00194 (W.D. Tex.).

10.8. The '523 Patent was the subject of a civil action in the U.S. District Court for the Western District of Texas, filed on June 15, 2020 and naming SK hynix, Inc. and SK hynix America Inc. as defendants. The case was voluntarily dismissed following the parties' settlement on May 10, 2021. *See Netlist, Inc. v. SK Hynix America Inc.*, No. 6:20-cv-00525 (W.D. Tex.).

10.9. The '523 Patent was the subject of a petition for inter partes review filed by SK hynix, Inc. and SK hynix America Inc. on August 21, 2020. The Board instituted the IPR on March 16, 2021. The IPR was terminated on May 6, 2021. *See SK hynix Inc. v. Netlist, Inc.*, IPR2020-01421 (PTAB).

10.10. The '523 Patent is the subject of a declaratory judgment action in the U.S. District Court for the District of Delaware, filed on January 15, 2021 by Samsung Electronics Co., Ltd. and Samsung Semiconductor, Inc. against Netlist, seeking a declaratory judgment of non-infringement, unenforceability, and breach of contract. Netlist asserted counterclaims of infringement against Samsung and later added counterclaims against Google LLC and Alphabet Inc. The case was stayed on December 1, 2023 pending the resolution of related proceedings in the Central District of California pertaining to a Netlist/Samsung JDLA. An order to extend the stay until at least the final disposition of ITC Inv. No. 337-TA-1472 was entered on June 5, 2026.

See Samsung Elecs. Co., Ltd. v. Netlist, Inc., No. 1:21-cv-01453 (D. Del.). The parties recently reached settlement on August 4, 2026, and the action is expected to be terminated.

10.11. The '523 Patent was the subject of a petition for inter partes review filed by Samsung Electronics Co., Ltd. on October 15, 2021. The Board found claims 1–34 not unpatentable under 35 U.S.C. § 103. The Federal Circuit summarily affirmed the Board's decision on March 5, 2025. *See Samsung Elecs. Co., Ltd. v. Netlist, Inc.*, IPR2022-00063 (PTAB); *Samsung Elecs. Co., Ltd. v. Netlist, Inc.*, No. 23-2133 (Fed. Cir.).

C. U.S. Patent No. 12,373,366

10.12. The '366 Patent is the subject of a civil action in the U.S. District Court for the Eastern District of Texas, filed on July 28, 2025 and naming Samsung Electronics America, Inc.; Samsung Electronics Co., Ltd.; and Samsung Semiconductor, Inc.; and Avnet, Inc. as defendants. The case was stayed on March 6, 2026 pending ITC Inv. No. 337-TA-1472. *See Netlist, Inc. v. Samsung Elecs. Co., Ltd.*, Case No. 2:25-cv-00748 (E.D. Tex.). The parties recently reached settlement on August 4, 2026, and the action is expected to be terminated.

10.13. The '366 Patent is the subject of a civil action in the U.S. District Court for the District of Delaware, filed on July 28, 2025 and naming Micron Technology, Inc.; Micron Semiconductor Products, Inc.; Micron Technology Texas LLC; and Avnet, Inc. as defendants. The case was transferred to the U.S. District Court for the District of Delaware on April 1, 2026. *See Netlist, Inc. v. Micron Tech., Inc.*, No. 2:25-cv-00749 (E.D. Tex.). The case was opened in the U.S. District Court for the District of Delaware on April 2, 2026. *See Netlist, Inc. v. Micron Tech., Inc.*, No. 1:26-cv-00362 (D. Del.).

10.14. The '366 Patent is the subject of a declaratory judgment action in the U.S. District Court for the District of Delaware, filed on July 29, 2025, by Micron Technology, Inc. and Micron Semiconductor Products, Inc. against Netlist, seeking a declaratory judgment of non-infringement.

This case was consolidated with *Netlist, Inc. v. Micron Tech., Inc.*, No. 1:26-cv-00362 (D. Del.), now the lead case, on May 22, 2026. *See Micron Tech., Inc. v. Netlist, Inc.*, No. 1:25-cv-00942 (D. Del.).

10.15. The '366 Patent was the subject of a petition for post grant review filed by Samsung Electronics Co., Ltd. on November 7, 2025. The Board issued its decision denying institution on April 28, 2026. *See Samsung Elecs. Co., Ltd. v. Netlist, Inc.*, PGR2026-00001 (PTAB).

10.16. The '366 Patent was the subject of a petition for inter partes review filed by Samsung Electronics Co., Ltd. on November 7, 2025. The Board denied institution on April 28, 2026. *See Samsung Elecs. Co., Ltd. v. Netlist, Inc.*, IPR2026-00018 (PTAB).

10.17. The '366 Patent is the subject of an ex parte reexamination (US 90/016,140) requested by Samsung Electronics Co., Ltd. on April 3, 2026. The reexamination request, which was directed to claims 1–38 of the '366 Patent, was granted on July 1, 2026. The parties recently reached settlement on August 4, 2026, and the ex parte reexamination is expected to be terminated.

10.18. The '366 Patent is the subject of an ex parte reexamination (US 90/016,418) requested by Micron Technology, Inc. on June 25, 2026. The reexamination request, which was directed to claims 1–38 of the '366 Patent, was docketed to the Examiner on July 16, 2026.

D. U.S. Patent No. 12,675,407

10.19. The '407 Patent is the subject of a civil action in the U.S. District Court for the Eastern District of Texas, filed on July 6, 2026 and naming Samsung Electronics America, Inc.; Samsung Electronics Co., Ltd.; Samsung Semiconductor, Inc.; and Avnet, Inc. as defendants. *See Netlist, Inc. v. Samsung Elecs. Co., Ltd. et al.*, No. 2:26-cv-00553 (E.D. Tex.). The parties recently reached settlement on August 4, 2026, and the action is expected to be terminated.

10.20. The '407 Patent is the subject of a declaratory judgment action in the U.S. District Court for the District of Delaware, filed on July 7, 2026 by Samsung Electronics America, Inc.;

Samsung Electronics Co., Ltd.; and Samsung Semiconductor, Inc. against Netlist, seeking a declaratory judgment of non-infringement, among other claims. *See Samsung Elecs. Co., Ltd. et al. v. Netlist, Inc.*, No. 1:26-cv-00821 (D. Del.). The parties recently reached settlement on August 4, 2026, and the action is expected to be terminated.

XI. RELIEF REQUESTED

11.1. WHEREFORE, by reason of the foregoing, Netlist respectfully requests that the U.S. International Trade Commission:

11.2. Institute an immediate investigation pursuant to Section 337 of the Tariff Act of 1930, as amended, 19 U.S.C. § 1337(a)(1)(B)(i) and (b)(1) with respect to violations of Section 337 based on the importation, sale for importation, and sale after importation into the U.S. by the Proposed Respondents of certain DRAM devices, and/or products containing the same, such as servers and computing systems, and/or components thereof that infringe one or more of the asserted claims of U.S. Patent Nos. 10,025,731; 10,217,523; 12,373,366; and 12,675,407.

11.3. Find a violation of Section 337 based on said unlawful acts;

11.4. Issue a permanent limited exclusion order under 19 U.S.C. § 1337(d)(1) barring from entry into the U.S. certain DRAM devices, and/or products containing the same, and/or components thereof manufactured by or on behalf of, or imported by or on behalf of, each of the Proposed Respondents or their affiliates;

11.5. Issue permanent cease-and-desist orders, under 19 U.S.C. § 1337(f), directing each respondent to cease and desist from the sale for importation, importation, sale after importation, distribution, offering for sale, promoting, marketing, advertising, testing, demonstrating, warehousing inventory for distribution, solicitation of sales, programming, repairing, maintaining, using, transferring, and other commercial activity relating to infringing certain DRAM devices, and/or products containing the same, and/or components thereof;

11.6. Impose a bond upon the proposed respondents who continue to import infringing articles, including certain DRAM devices, and/or products containing the same, and/or components thereof, during the 60-day Presidential review period pursuant to 19 U.S.C. § 1337(j); and

11.7. Grant such other and further relief as the Commission deems just and proper based on the facts determined by the Investigation and the authority of the Commission.

Dated: August 10, 2026

Respectfully submitted,

/s/ Kevin C. Wheeler

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Counsel for Complainant Netlist, Inc.

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

In the Matter of

**CERTAIN DYNAMIC RANDOM ACCESS
MEMORY (DRAM) DEVICES,
PRODUCTS CONTAINING THE SAME,
AND COMPONENTS THEREOF (III)**

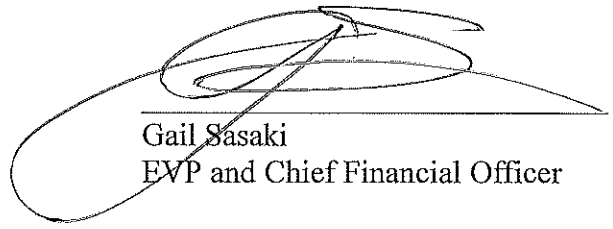
Investigation No. 337-TA-_____

VERIFICATION OF COMPLAINT

I, Gail Sasaki, am Executive Vice President and Chief Financial Officer of Netlist, Inc., and am authorized to execute this verification of the accompanying Complaint under Section 337 of the Tariff Act of 1390, as Amended, on behalf of Complainant Netlist. In accordance with Commission Rules 210.4 and 210.12(a), under penalty of perjury, I declare that:

1. I have read the Complaint and am familiar with the allegations and statements contained therein.
2. To the best of my knowledge, information, and belief founded after reasonable inquiry under the circumstances, the allegations and statements made in the Complaint are well grounded in fact and are warranted by existing law or a good faith argument for the extension, modification, or reversal of existing law.
3. The allegations and other factual contentions in the Complaint have evidentiary support or are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.
4. This Complaint is not being filed for any improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation.

Executed on August 10, 2026.



Gail Sasaki
EVP and Chief Financial Officer